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114TH CONGRESS
1ST SESSION

H. R. 2029

[Report No. 114–57]

IN THE SENATE OF THE UNITED STATES

MAY 4, 2015

Received; read twice and referred to the Committee on Appropriations

MAY 21, 2015

Reported by Mr. KIRK, with an amendment

[Strike out all after the enacting clause and insert the part printed in *italic*]

AN ACT

Making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2016, and for other purposes.

~~DEPARTMENT OF DEFENSE~~

For acquisition, construction, installation, and equipment of temporary or permanent public works, military installations, facilities, and real property for the Army as currently authorized by law, including personnel in the Army Corps of Engineers and other personal services necessary for the purposes of this appropriation, and for construction and operation of facilities in support of the functions of the Commander in Chief, \$663,245,000, to remain available until September 30, 2020: *Provided*, That of this amount, not to exceed \$109,245,000 shall be available for study, planning, design, architect and engineer services, and host nation support, as authorized by law, unless the Secretary of the Army determines that additional obligations are necessary for such purposes and no-

1 tifies the Committees on Appropriations of both Houses
2 of Congress of the determination and the reasons therefor.

3 ~~MILITARY CONSTRUCTION, NAVY AND MARINE CORPS~~

4 ~~For acquisition, construction, installation, and equip-~~
5 ~~ment of temporary or permanent public works, naval in-~~
6 ~~stallations, facilities, and real property for the Navy and~~
7 ~~Marine Corps as currently authorized by law, including~~
8 ~~personnel in the Naval Facilities Engineering Command~~
9 ~~and other personal services necessary for the purposes of~~
10 ~~this appropriation, \$1,349,678,000, to remain available~~
11 ~~until September 30, 2020: *Provided*, That of this amount,~~
12 ~~not to exceed \$91,649,000 shall be available for study,~~
13 ~~planning, design, and architect and engineer services, as~~
14 ~~authorized by law, unless the Secretary of the Navy deter-~~
15 ~~mines that additional obligations are necessary for such~~
16 ~~purposes and notifies the Committees on Appropriations~~
17 ~~of both Houses of Congress of the determination and the~~
18 ~~reasons therefor.~~

19 ~~MILITARY CONSTRUCTION, AIR FORCE~~

20 ~~For acquisition, construction, installation, and equip-~~
21 ~~ment of temporary or permanent public works, military~~
22 ~~installations, facilities, and real property for the Air Force~~
23 ~~as currently authorized by law, \$1,237,055,000, to remain~~
24 ~~available until September 30, 2020: *Provided*, That of this~~
25 ~~amount, not to exceed \$89,164,000 shall be available for~~

1 study, planning, design, and architect and engineer serv-
 2 ices, as authorized by law, unless the Secretary of the Air
 3 Force determines that additional obligations are necessary
 4 for such purposes and notifies the Committees on Appro-
 5 priations of both Houses of Congress of the determination
 6 and the reasons therefor.

7 MILITARY CONSTRUCTION, DEFENSE-WIDE

8 (INCLUDING TRANSFER OF FUNDS)

9 For acquisition, construction, installation, and equip-
 10 ment of temporary or permanent public works, installa-
 11 tions, facilities, and real property for activities and agen-
 12 cies of the Department of Defense (other than the military
 13 departments), as currently authorized by law,
 14 \$1,931,456,000 (reduced by \$30,000,000) (increased by
 15 \$30,000,000), to remain available until September 30,
 16 2020: *Provided*, That such amounts of this appropriation
 17 as may be determined by the Secretary of Defense may
 18 be transferred to such appropriations of the Department
 19 of Defense available for military construction or family
 20 housing as the Secretary may designate, to be merged with
 21 and to be available for the same purposes, and for the
 22 same time period, as the appropriation or fund to which
 23 transferred: *Provided further*, That of the amount appro-
 24 priated, not to exceed \$160,404,000 (increased by
 25 \$30,000,000) shall be available for study, planning, de-

1 sign, and architect and engineer services, as authorized
2 by law, unless the Secretary of Defense determines that
3 additional obligations are necessary for such purposes and
4 notifies the Committees on Appropriations of both Houses
5 of Congress of the determination and the reasons therefor:
6 *Provided further*, That none of the funds made available
7 by this title may be used to construct any fiscal year 2016
8 special operations command military construction projects
9 until the Commander of the Special Operations Command
10 has certified in writing and submits to the Committees on
11 Appropriations of both Houses of Congress a report that
12 includes the following:

13 (1) A definition of “Special Operations Forces-
14 peculiar” as it applies to the use of United States
15 Special Operations Command (USSOCOM) funding
16 to meet military construction requirements for facili-
17 ties that provide healthcare services or support fit-
18 ness activities.

19 (2) A description of the decision-making process
20 used to determine whether a military construction
21 project that provides healthcare facilities or supports
22 fitness activities should be funded by the USSOCOM
23 or the military departments.

24 (3) Provides a schematic of the human perform-
25 ance centers by installation, a listing of the planned

1 equipment related to training and resiliency and a
2 description of the mission-critical benefit of each
3 item, an explanation of why the unique physical and
4 psychological health services incorporated could not
5 be provided by the Defense Health Agency or mili-
6 tary services, and a planned staffing breakdown.

7 **MILITARY CONSTRUCTION, ARMY NATIONAL GUARD**

8 For construction, acquisition, expansion, rehabilita-
9 tion, and conversion of facilities for the training and ad-
10 ministration of the Army National Guard, and contribu-
11 tions therefor, as authorized by chapter 1803 of title 10,
12 United States Code, and Military Construction Authoriza-
13 tion Acts, \$167,437,000, to remain available until Sep-
14 tember 30, 2020: *Provided*, That of the amount appro-
15 priated, not to exceed \$20,337,000 shall be available for
16 study, planning, design, and architect and engineer serv-
17 ices, as authorized by law, unless the Director of the Army
18 National Guard determines that additional obligations are
19 necessary for such purposes and notifies the Committees
20 on Appropriations of both Houses of Congress of the de-
21 termination and the reasons therefor.

22 **MILITARY CONSTRUCTION, AIR NATIONAL GUARD**

23 For construction, acquisition, expansion, rehabilita-
24 tion, and conversion of facilities for the training and ad-
25 ministration of the Air National Guard, and contributions

1 therefor, as authorized by chapter 1803 of title 10, United
2 States Code, and Military Construction Authorization
3 Acts, \$138,738,000, to remain available until September
4 30, 2020: *Provided*, That of the amount appropriated, not
5 to exceed \$5,104,000 shall be available for study, plan-
6 ning, design, and architect and engineer services, as au-
7 thorized by law, unless the Director of the Air National
8 Guard determines that additional obligations are nec-
9 essary for such purposes and notifies the Committees on
10 Appropriations of both Houses of Congress of the deter-
11 mination and the reasons therefor.

12 MILITARY CONSTRUCTION, ARMY RESERVE

13 For construction, acquisition, expansion, rehabilita-
14 tion, and conversion of facilities for the training and ad-
15 ministration of the Army Reserve as authorized by chapter
16 1803 of title 10, United States Code, and Military Con-
17 struction Authorization Acts, \$104,295,000, to remain
18 available until September 30, 2020: *Provided*, That of the
19 amount appropriated, not to exceed \$9,318,000 shall be
20 available for study, planning, design, and architect and en-
21 gineer services, as authorized by law, unless the Chief of
22 the Army Reserve determines that additional obligations
23 are necessary for such purposes and notifies the Commit-
24 tees on Appropriations of both Houses of Congress of the
25 determination and the reasons therefor.

1 MILITARY CONSTRUCTION, NAVY RESERVE

2 For construction, acquisition, expansion, rehabilita-
 3 tion, and conversion of facilities for the training and ad-
 4 ministration of the reserve components of the Navy and
 5 Marine Corps as authorized by chapter 1803 of title 10,
 6 United States Code, and Military Construction Authoriza-
 7 tion Acts, \$36,078,000, to remain available until Sep-
 8 tember 30, 2020: *Provided*, That of the amount appro-
 9 priated, not to exceed \$2,208,000 shall be available for
 10 study, planning, design, and architect and engineer serv-
 11 ices, as authorized by law, unless the Secretary of the
 12 Navy determines that additional obligations are necessary
 13 for such purposes and notifies the Committees on Appro-
 14 priations of both Houses of Congress of the determination
 15 and the reasons therefor.

16 MILITARY CONSTRUCTION, AIR FORCE RESERVE

17 For construction, acquisition, expansion, rehabilita-
 18 tion, and conversion of facilities for the training and ad-
 19 ministration of the Air Force Reserve as authorized by
 20 chapter 1803 of title 10, United States Code, and Military
 21 Construction Authorization Acts, \$65,021,000, to remain
 22 available until September 30, 2020: *Provided*, That of the
 23 amount appropriated, not to exceed \$13,400,000 shall be
 24 available for study, planning, design, and architect and en-
 25 gineer services, as authorized by law, unless the Chief of

1 the Air Force Reserve determines that additional obliga-
 2 tions are necessary for such purposes and notifies the
 3 Committees on Appropriations of both Houses of Congress
 4 of the determination and the reasons therefor.

5 NORTH ATLANTIC TREATY ORGANIZATION

6 SECURITY INVESTMENT PROGRAM

7 For the United States share of the cost of the North
 8 Atlantic Treaty Organization Security Investment Pro-
 9 gram for the acquisition and construction of military fa-
 10 cilities and installations (including international military
 11 headquarters) and for related expenses for the collective
 12 defense of the North Atlantic Treaty Area as authorized
 13 by section 2806 of title 10, United States Code, and Mili-
 14 tary Construction Authorization Acts, \$150,000,000, to
 15 remain available until expended.

16 FAMILY HOUSING CONSTRUCTION, ARMY

17 For expenses of family housing for the Army for con-
 18 struction, including acquisition, replacement, addition, ex-
 19 pansion, extension, and alteration, as authorized by law,
 20 \$99,695,000, to remain available until September 30,
 21 2020.

22 FAMILY HOUSING OPERATION AND MAINTENANCE,

23 ARMY

24 For expenses of family housing for the Army for op-
 25 eration and maintenance, including debt payment, leasing,

1 minor construction, principal and interest charges, and in-
2 surance premiums, as authorized by law, \$393,511,000.

3 ~~FAMILY HOUSING CONSTRUCTION, NAVY AND MARINE~~
4 ~~CORPS~~

5 For expenses of family housing for the Navy and Ma-
6 rine Corps for construction, including acquisition, replace-
7 ment, addition, expansion, extension, and alteration, as
8 authorized by law, \$16,541,000, to remain available until
9 September 30, 2020.

10 ~~FAMILY HOUSING OPERATION AND MAINTENANCE,~~
11 ~~NAVY AND MARINE CORPS~~

12 For expenses of family housing for the Navy and Ma-
13 rine Corps for operation and maintenance, including debt
14 payment, leasing, minor construction, principal and inter-
15 est charges, and insurance premiums, as authorized by
16 law, \$353,036,000.

17 ~~FAMILY HOUSING CONSTRUCTION, AIR FORCE~~

18 For expenses of family housing for the Air Force for
19 construction, including acquisition, replacement, addition,
20 expansion, extension, and alteration, as authorized by law,
21 \$160,498,000, to remain available until September 30,
22 2020.

8 FAMILY HOUSING OPERATION AND MAINTENANCE,
9 DEFENSE-WIDE

15 ~~DEPARTMENT OF DEFENSE BASE CLOSURE ACCOUNT~~

21 ~~ADMINISTRATIVE PROVISIONS~~

•HR 2029 RS

1 except Alaska, without the specific approval in writing of
2 the Secretary of Defense setting forth the reasons there-
3 for.

4 ~~SEC. 102.~~ Funds made available in this title for con-
5 struction shall be available for hire of passenger motor ve-
6 hicles.

7 ~~SEC. 103.~~ Funds made available in this title for con-
8 struction may be used for advances to the Federal High-
9 way Administration, Department of Transportation, for
10 the construction of access roads as authorized by section
11 210 of title 23, United States Code, when projects author-
12 ized therein are certified as important to the national de-
13 fense by the Secretary of Defense.

14 ~~SEC. 104.~~ None of the funds made available in this
15 title may be used to begin construction of new bases in
16 the United States for which specific appropriations have
17 not been made.

18 ~~SEC. 105.~~ None of the funds made available in this
19 title shall be used for purchase of land or land easements
20 in excess of 100 percent of the value as determined by
21 the Army Corps of Engineers or the Naval Facilities Engi-
22 neering Command, except: (1) where there is a determina-
23 tion of value by a Federal court; (2) purchases negotiated
24 by the Attorney General or the designee of the Attorney
25 General; (3) where the estimated value is less than

1 \$25,000; or (4) as otherwise determined by the Secretary
2 of Defense to be in the public interest.

3 SEC. 106. None of the funds made available in this
4 title shall be used to: (1) acquire land; (2) provide for site
5 preparation; or (3) install utilities for any family housing;
6 except housing for which funds have been made available
7 in annual Acts making appropriations for military con-
8 struction.

9 SEC. 107. None of the funds made available in this
10 title for minor construction may be used to transfer or
11 relocate any activity from one base or installation to an-
12 other, without prior notification to the Committees on Ap-
13 propriations of both Houses of Congress.

14 SEC. 108. None of the funds made available in this
15 title may be used for the procurement of steel for any con-
16 struction project or activity for which American steel pro-
17 ducers, fabricators, and manufacturers have been denied
18 the opportunity to compete for such steel procurement.

19 SEC. 109. None of the funds available to the Depart-
20 ment of Defense for military construction or family hous-
21 ing during the current fiscal year may be used to pay real
22 property taxes in any foreign nation.

23 SEC. 110. None of the funds made available in this
24 title may be used to initiate a new installation overseas

1 without prior notification to the Committees on Appro-
2 priations of both Houses of Congress.

3 ~~SEC. 111.~~ None of the funds made available in this
4 title may be obligated for architect and engineer contracts
5 estimated by the Government to exceed \$500,000 for
6 projects to be accomplished in Japan, in any North Atlan-
7 tic Treaty Organization member country, or in countries
8 bordering the Arabian Gulf, unless such contracts are
9 awarded to United States firms or United States firms
10 in joint venture with host nation firms.

11 ~~SEC. 112.~~ None of the funds made available in this
12 title for military construction in the United States terri-
13 tories and possessions in the Pacific and on Kwajalein
14 Atoll, or in countries bordering the Arabian Gulf, may be
15 used to award any contract estimated by the Government
16 to exceed \$1,000,000 to a foreign contractor. *Provided,*
17 That this section shall not be applicable to contract
18 awards for which the lowest responsive and responsible bid
19 of a United States contractor exceeds the lowest respon-
20 sive and responsible bid of a foreign contractor by greater
21 than 20 percent. *Provided further,* That this section shall
22 not apply to contract awards for military construction on
23 Kwajalein Atoll for which the lowest responsive and re-
24 sponsible bid is submitted by a Marshallese contractor.

1 ~~SEC. 113.~~ The Secretary of Defense shall inform the
2 appropriate committees of both Houses of Congress, in-
3 cluding the Committees on Appropriations, of plans and
4 scope of any proposed military exercise involving United
5 States personnel 30 days prior to its occurring, if amounts
6 expended for construction, either temporary or permanent,
7 are anticipated to exceed \$100,000.

8 ~~SEC. 114.~~ Funds appropriated to the Department of
9 Defense for construction in prior years shall be available
10 for construction authorized for each such military depart-
11 ment by the authorizations enacted into law during the
12 current session of Congress.

13 ~~SEC. 115.~~ For military construction or family housing
14 projects that are being completed with funds otherwise ex-
15 pired or lapsed for obligation, expired or lapsed funds may
16 be used to pay the cost of associated supervision, inspec-
17 tion, overhead, engineering and design on those projects
18 and on subsequent claims, if any.

19 ~~SEC. 116.~~ Notwithstanding any other provision of
20 law, any funds made available to a military department
21 or defense agency for the construction of military projects
22 may be obligated for a military construction project or
23 contract, or for any portion of such a project or contract,
24 at any time before the end of the fourth fiscal year after
25 the fiscal year for which funds for such project were made

1 available, if the funds obligated for such project: (1) are
 2 obligated from funds available for military construction
 3 projects; and (2) do not exceed the amount appropriated
 4 for such project, plus any amount by which the cost of
 5 such project is increased pursuant to law.

6 (INCLUDING TRANSFER OF FUNDS)

7 SEC. 117. Subject to 30 days prior notification, or
 8 14 days for a notification provided in an electronic me-
 9 dium pursuant to sections 480 and 2883 of title 10,
 10 United States Code, to the Committees on Appropriations
 11 of both Houses of Congress, such additional amounts as
 12 may be determined by the Secretary of Defense may be
 13 transferred to: (1) the Department of Defense Family
 14 Housing Improvement Fund from amounts appropriated
 15 for construction in “Family Housing” accounts, to be
 16 merged with and to be available for the same purposes
 17 and for the same period of time as amounts appropriated
 18 directly to the Fund; or (2) the Department of Defense
 19 Military Unaccompanied Housing Improvement Fund
 20 from amounts appropriated for construction of military
 21 unaccompanied housing in “Military Construction” ac-
 22 counts, to be merged with and to be available for the same
 23 purposes and for the same period of time as amounts ap-
 24 propriated directly to the Fund: *Provided*, That appropria-
 25 tions made available to the Funds shall be available to

1 cover the costs, as defined in section 502(5) of the Con-
 2 gressional Budget Act of 1974, of direct loans or loan
 3 guarantees issued by the Department of Defense pursuant
 4 to the provisions of subchapter IV of chapter 169 of title
 5 10, United States Code, pertaining to alternative means
 6 of acquiring and improving military family housing, mili-
 7 tary unaccompanied housing, and supporting facilities:
 8 *Provided further*, That the transfer authority in this provi-
 9 sion shall also be applicable to amounts appropriated for
 10 construction in “Family Housing” accounts in section
 11 2002 of Public Law 112–10.

12 (INCLUDING TRANSFER OF FUNDS)

13 SEC. 118. In addition to any other transfer authority
 14 available to the Department of Defense, amounts may be
 15 transferred from the Department of Defense Base Closure
 16 Account to the fund established by section 1013(d) of the
 17 Demonstration Cities and Metropolitan Development Act
 18 of 1966 (42 U.S.C. 3374) to pay for expenses associated
 19 with the Homeowners Assistance Program incurred under
 20 42 U.S.C. 3374(a)(1)(A). Any amounts transferred shall
 21 be merged with and be available for the same purposes
 22 and for the same time period as the fund to which trans-
 23 ferred.

24 SEC. 119. Notwithstanding any other provision of
 25 law, funds made available in this title for operation and

1 maintenance of family housing shall be the exclusive
 2 source of funds for repair and maintenance of all family
 3 housing units, including general or flag officer quarters;
 4 *Provided*, That not more than \$15,000 per unit may be
 5 spent annually for the maintenance and repair of any gen-
 6 eral or flag officer quarters without 30 days prior notifica-
 7 tion, or 14 days for a notification provided in an electronic
 8 medium pursuant to sections 480 and 2883 of title 10,
 9 United States Code, to the Committees on Appropriations
 10 of both Houses of Congress, except that an after-the-fact
 11 notification shall be submitted if the limitation is exceeded
 12 solely due to costs associated with environmental remedi-
 13 ation that could not be reasonably anticipated at the time
 14 of the budget submission.

15 ~~SEC. 120.~~ Amounts contained in the Ford Island Im-
 16 provement Account established by subsection (h) of sec-
 17 tion 2814 of title 10, United States Code, are appro-
 18 priated and shall be available until expended for the pur-
 19 poses specified in subsection (i)(1) of such section or until
 20 transferred pursuant to subsection (i)(3) of such section.

21 ~~(INCLUDING TRANSFER OF FUNDS)~~

22 ~~SEC. 121.~~ During the 5-year period after appropria-
 23 tions available in this Act to the Department of Defense
 24 for military construction and family housing operation and
 25 maintenance and construction have expired for obligation;

1 upon a determination that such appropriations will not be
2 necessary for the liquidation of obligations or for making
3 authorized adjustments to such appropriations for obliga-
4 tions incurred during the period of availability of such ap-
5 propriations, unobligated balances of such appropriations
6 may be transferred into the appropriation “Foreign Cur-
7 rency Fluctuations, Construction, Defense”, to be merged
8 with and to be available for the same time period and for
9 the same purposes as the appropriation to which trans-
10 ferred.

11 SEC. 122: (a) Except as provided in subsection (b),
12 none of the funds made available in this Act may be used
13 by the Secretary of the Army to relocate a unit in the
14 Army that—

15 (1) performs a testing mission or function that
16 is not performed by any other unit in the Army and
17 is specifically stipulated in title 10, United States
18 Code; and

19 (2) is located at a military installation at which
20 the total number of civilian employees of the Depart-
21 ment of the Army and Army contractor personnel
22 employed exceeds 10 percent of the total number of
23 members of the regular and reserve components of
24 the Army assigned to the installation.

16 SEC. 124. None of the funds made available in this
17 title may be obligated or expended for planning and design
18 and construction of projects at Arlington National Ceme-
19 tery.

SEC. 125. Of the unobligated balances available for
“Military Construction, Army”, from prior appropriation
Acts (other than appropriations designated by law as
being for contingency operations directly related to the

1 global war on terrorism or as an emergency requirement);
2 \$96,000,000 are hereby rescinded.

3 (RESCISSION OF FUNDS)

4 SEC. 126. Of the unobligated balances available for
5 “Military Construction, Air Force”, from prior appropria-
6 tion Acts (other than appropriations designated by law as
7 being for contingency operations directly related to the
8 global war on terrorism or as an emergency requirement);
9 \$52,600,000 are hereby rescinded.

10 (RESCISSION OF FUNDS)

11 SEC. 127. Of the unobligated balances available for
12 “Military Construction, Defense-Wide”, from prior appro-
13 priation Acts (other than appropriations designated by law
14 as being for contingency operations directly related to the
15 global war on terrorism or as an emergency requirement);
16 \$134,000,000 are hereby rescinded.

17 (RESCISSION OF FUNDS)

18 SEC. 128. Of the unobligated balances made available
19 in prior appropriation Acts for the fund established in sec-
20 tion 1013(d) of the Demonstration Cities and Metropoli-
21 tan Development Act of 1966 (42 U.S.C. 3374) (other
22 than appropriations designated by law as being for contin-
23 gency operations directly related to the global war on ter-
24 rorism or as an emergency requirement), \$103,918,000
25 are hereby rescinded.

1 ~~SEC. 129.~~ For the purposes of this Act, the term
2 “congressional defense committees” means the Commit-
3 tees on Armed Services of the House of Representatives
4 and the Senate, the Subcommittee on Military Construc-
5 tion and Veterans Affairs of the Committee on Appropria-
6 tions of the Senate, and the Subcommittee on Military
7 Construction and Veterans Affairs of the Committee on
8 Appropriations of the House of Representatives.

9 ~~SEC. 130.~~ None of the funds made available by this
10 title may be used to carry out the closure or realignment
11 of Lajes Air Force Base, Azores, and, unless and until
12 the Secretary of Defense certifies in writing to the con-
13 gressional defense committees that, based on operational
14 requirements, Lajes Air Force Base is not an optimal loca-
15 tion for the Joint Intelligence Analysis Complex, none of
16 the funds made available by this title may be used to con-
17 struct phase two of the Joint Intelligence Analysis Com-
18 plex Consolidation at Royal Air Force Croughton, United
19 Kingdom.

20 ~~SEC. 131.~~ Notwithstanding section 124, for an addi-
21 tional amount for “Military Construction, Army” in this
22 title, \$30,000,000 is provided for advances to the Federal
23 Highway Administration, Department of Transportation,
24 for construction of access roads as authorized by section
25 210 of title 23, United States Code.

1 TITLE H
2 DEPARTMENT OF VETERANS AFFAIRS
3 VETERANS BENEFITS ADMINISTRATION
4 COMPENSATION AND PENSIONS
5 (INCLUDING TRANSFER OF FUNDS)

6 For the payment of compensation benefits to or on
7 behalf of veterans and a pilot program for disability ex-
8 aminations as authorized by section 107 and chapters 11,
9 13, 18, 51, 53, 55, and 61 of title 38, United States Code;
10 pension benefits to or on behalf of veterans as authorized
11 by chapters 15, 51, 53, 55, and 61 of title 38, United
12 States Code; and burial benefits, the Reinstated Entitle-
13 ment Program for Survivors, emergency and other offi-
14 cers' retirement pay, adjusted-service credits and certifi-
15 cates, payment of premiums due on commercial life insur-
16 ance policies guaranteed under the provisions of title IV
17 of the Servicemembers Civil Relief Act (50 U.S.C. App.
18 541 et seq.) and for other benefits as authorized by sec-
19 tions 107, 1312, 1977, and 2106, and chapters 23, 51,
20 53, 55, and 61 of title 38, United States Code,
21 \$166,271,436,000, to remain available until expended, of
22 which \$87,146,761,000 shall become available on October
23 1, 2016: *Provided*, That not to exceed \$15,562,000 of the
24 amount made available for fiscal year 2016 and
25 \$16,021,000 of the amount made available for fiscal year

1 2017 under this heading shall be reimbursed to “General
 2 Operating Expenses, Veterans Benefits Administration”,
 3 and “Information Technology Systems” for necessary ex-
 4 penses in implementing the provisions of chapters 51, 53,
 5 and 55 of title 38, United States Code, the funding source
 6 for which is specifically provided as the “Compensation
 7 and Pensions” appropriation: *Provided further*, That such
 8 sums as may be earned on an actual qualifying patient
 9 basis, shall be reimbursed to “Medical Care Collections
 10 Fund” to augment the funding of individual medical facili-
 11 ties for nursing home care provided to pensioners as au-
 12 thorized.

13 READJUSTMENT BENEFITS

14 For the payment of readjustment and rehabilitation
 15 benefits to or on behalf of veterans as authorized by chap-
 16 ters 21, 30, 31, 33, 34, 35, 36, 39, 41, 51, 53, 55, and
 17 61 of title 38, United States Code, \$32,088,826,000, to
 18 remain available until expended, of which
 19 \$16,743,904,000 shall become available on October 1,
 20 2016: *Provided*, That expenses for rehabilitation program
 21 services and assistance which the Secretary is authorized
 22 to provide under subsection (a) of section 3104 of title
 23 38, United States Code, other than under paragraphs (1),
 24 (2), (5), and (11) of that subsection, shall be charged to
 25 this account.

1 VETERANS INSURANCE AND INDEMNITIES

2 For military and naval insurance, national service life
3 insurance, servicemen's indemnities, service-disabled vet-
4 erans insurance, and veterans mortgage life insurance as
5 authorized by chapters 19 and 21, title 38, United States
6 Code, \$169,080,000, to remain available until expended,
7 of which \$91,920,000 shall become available on October
8 1, 2016.

9 VETERANS HOUSING BENEFIT PROGRAM FUND

10 For the cost of direct and guaranteed loans, such
11 sums as may be necessary to carry out the program, as
12 authorized by subchapters I through III of chapter 37 of
13 title 38, United States Code: *Provided*, That such costs,
14 including the cost of modifying such loans, shall be as de-
15 fined in section 502 of the Congressional Budget Act of
16 1974: *Provided further*, That during fiscal year 2016,
17 within the resources available, not to exceed \$500,000 in
18 gross obligations for direct loans are authorized for spe-
19 cially adapted housing loans.

20 In addition, for administrative expenses to carry out
21 the direct and guaranteed loan programs, \$164,558,000.

22 VOCATIONAL REHABILITATION LOANS PROGRAM ACCOUNT

23 For the cost of direct loans, \$31,000, as authorized
24 by chapter 31 of title 38, United States Code: *Provided*,
25 That such costs, including the cost of modifying such

1 loans, shall be as defined in section 502 of the Congres-
 2 sional Budget Act of 1974: *Provided further*, That funds
 3 made available under this heading are available to sub-
 4 sidize gross obligations for the principal amount of direct
 5 loans not to exceed \$2,952,000.

6 In addition, for administrative expenses necessary to
 7 carry out the direct loan program, \$367,000, which may
 8 be paid to the appropriation for “General Operating Ex-
 9 penses, Veterans Benefits Administration”.

10 NATIVE AMERICAN VETERAN HOUSING LOAN PROGRAM
 11 ACCOUNT

12 For administrative expenses to carry out the direct
 13 loan program authorized by subchapter V of chapter 37
 14 of title 38, United States Code, \$1,134,000.

15 VETERANS HEALTH ADMINISTRATION
 16 MEDICAL SERVICES

17 For necessary expenses for furnishing, as authorized
 18 by law, inpatient and outpatient care and treatment to
 19 beneficiaries of the Department of Veterans Affairs and
 20 veterans described in section 1705(a) of title 38, United
 21 States Code, including care and treatment in facilities not
 22 under the jurisdiction of the Department, and including
 23 medical supplies and equipment, bioengineering services,
 24 food services, and salaries and expenses of healthcare em-
 25 ployees hired under title 38, United States Code, aid to

1 State homes as authorized by section 1741 of title 38,
 2 United States Code; assistance and support services for
 3 caregivers as authorized by section 1720G of title 38,
 4 United States Code; loan repayments authorized by sec-
 5 tion 604 of the Caregivers and Veterans Omnibus Health
 6 Services Act of 2010 (Public Law 111–163, 124 Stat.
 7 1174; 38 U.S.C. 7681 note); and hospital care and med-
 8 ical services authorized by section 1787 of title 38, United
 9 States Code; \$969,554,000, which shall be in addition to
 10 funds previously appropriated under this heading that be-
 11 came available on October 1, 2015; and, in addition,
 12 \$51,673,000,000, plus reimbursements, shall become
 13 available on October 1, 2016, and shall remain available
 14 until September 30, 2017: *Provided*, That notwithstanding
 15 any other provision of law, the Secretary of Veterans Af-
 16 fairs shall establish a priority for the provision of medical
 17 treatment for veterans who have service-connected disabil-
 18 ities, lower income, or have special needs: *Provided further*,
 19 That notwithstanding any other provision of law, the Sec-
 20 retary of Veterans Affairs shall give priority funding for
 21 the provision of basic medical benefits to veterans in en-
 22 rollment priority groups 1 through 6: *Provided further*,
 23 That notwithstanding any other provision of law, the Sec-
 24 retary of Veterans Affairs may authorize the dispensing
 25 of prescription drugs from Veterans Health Administra-

1 tion facilities to enrolled veterans with privately written
 2 prescriptions based on requirements established by the
 3 Secretary: *Provided further*, That the implementation of
 4 the program described in the previous proviso shall incur
 5 no additional cost to the Department of Veterans Affairs.

6 MEDICAL SUPPORT AND COMPLIANCE

7 For necessary expenses in the administration of the
 8 medical, hospital, nursing home, domiciliary, construction,
 9 supply, and research activities, as authorized by law; ad-
 10 ministrative expenses in support of capital policy activi-
 11 ties; and administrative and legal expenses of the Depart-
 12 ment for collecting and recovering amounts owed the De-
 13 partment as authorized under chapter 17 of title 38,
 14 United States Code, and the Federal Medical Care Recov-
 15 ery Act (42 U.S.C. 2651 et seq.), \$6,524,000,000, plus
 16 reimbursements, shall become available on October 1,
 17 2016, and shall remain available until September 30,
 18 2017.

19 MEDICAL FACILITIES

20 For necessary expenses for the maintenance and op-
 21 eration of hospitals, nursing homes, domiciliary facilities,
 22 and other necessary facilities of the Veterans Health Ad-
 23 ministration; for administrative expenses in support of
 24 planning, design, project management, real property ac-
 25 quisition and disposition, construction, and renovation of

1 any facility under the jurisdiction or for the use of the
2 Department; for oversight, engineering, and architectural
3 activities not charged to project costs; for repairing, alter-
4 ing, improving, or providing facilities in the several hos-
5 pitals and homes under the jurisdiction of the Depart-
6 ment, not otherwise provided for, either by contract or by
7 the hire of temporary employees and purchase of mate-
8 rials; for leases of facilities; and for laundry services;
9 \$5,074,000,000, plus reimbursements, shall become avail-
10 able on October 1, 2016, and shall remain available until
11 September 30, 2017.

12 MEDICAL AND PROSTHETIC RESEARCH

13 For necessary expenses in carrying out programs of
14 medical and prosthetic research and development as au-
15 thorized by chapter 73 of title 38, United States Code;
16 \$621,813,000, plus reimbursements, shall remain avail-
17 able until September 30, 2017.

18 NATIONAL CEMETERY ADMINISTRATION

19 For necessary expenses of the National Cemetery Ad-
20 ministration for operations and maintenance, not other-
21 wise provided for, including uniforms or allowances there-
22 for; cemeterial expenses as authorized by law; purchase
23 of one passenger motor vehicle for use in cemeterial oper-
24 ations; hire of passenger motor vehicles; and repair, alter-
25 ation or improvement of facilities under the jurisdiction

1 of the National Cemetery Administration, \$266,220,000,
 2 of which not to exceed \$26,600,000 shall remain available
 3 until September 30, 2017.

4 DEPARTMENTAL ADMINISTRATION

5 GENERAL ADMINISTRATION

6 (INCLUDING TRANSFER OF FUNDS)

7 For necessary operating expenses of the Department
 8 of Veterans Affairs, not otherwise provided for, including
 9 administrative expenses in support of Department-wide
 10 capital planning, management and policy activities, uni-
 11 forms, or allowances therefor, not to exceed \$25,000 for
 12 official reception and representation expenses; hire of pas-
 13 senger motor vehicles; and reimbursement of the General
 14 Services Administration for security guard services,
 15 \$336,659,000 (reduced by \$8,000,000) (increased by
 16 \$8,000,000) (reduced by \$500,000) (increased by
 17 \$500,000) (reduced by \$2,000,000) (reduced by \$50,000)
 18 (increased by \$50,000) (reduced by \$3,200,000), of which
 19 not to exceed \$10,100,000 shall remain available until
 20 September 30, 2017: *Provided*, That funds provided under
 21 this heading may be transferred to “General Operating
 22 Expenses, Veterans Benefits Administration”.

23 BOARD OF VETERANS APPEALS

24 For necessary operating expenses of the Board of
 25 Veterans Appeals, \$107,884,000 (increased by

1 \$2,000,000), of which not to exceed \$10,788,000 shall re-
 2 main available until September 30, 2017.

3 ~~GENERAL OPERATING EXPENSES, VETERANS BENEFITS~~
 4 ~~ADMINISTRATION~~

5 For necessary operating expenses of the Veterans
 6 Benefits Administration, not otherwise provided for, in-
 7 cluding hire of passenger motor vehicles, reimbursement
 8 of the General Services Administration for security guard
 9 services, and reimbursement of the Department of De-
 10 fense for the cost of overseas employee mail,
 11 \$2,697,734,000 (reduced by \$5,000,000) (increased by
 12 \$5,000,000) (reduced by \$5,000,000) (increased by
 13 \$5,000,000): *Provided*, That expenses for services and as-
 14 sistance authorized under paragraphs (1), (2), (5), and
 15 (11) of section 3104(a) of title 38, United States Code,
 16 that the Secretary of Veterans Affairs determines are nec-
 17 essary to enable entitled veterans: (1) to the maximum ex-
 18 tent feasible, to become employable and to obtain and
 19 maintain suitable employment; or (2) to achieve maximum
 20 independence in daily living, shall be charged to this ac-
 21 count: *Provided further*, That of the funds made available
 22 under this heading, not to exceed \$134,800,000 shall re-
 23 main available until September 30, 2017.

1 INFORMATION TECHNOLOGY SYSTEMS

2 (INCLUDING TRANSFER OF FUNDS)

3 For necessary expenses for information technology
4 systems and telecommunications support, including devel-
5 opmental information systems and operational information
6 systems; for pay and associated costs; and for the capital
7 asset acquisition of information technology systems; in-
8 cluding management and related contractual costs of said
9 acquisitions, including contractual costs associated with
10 operations authorized by section 3109 of title 5, United
11 States Code, \$4,038,363,000 (increased by \$3,200,000),
12 plus reimbursements: *Provided*, That \$1,115,757,000
13 shall be for pay and associated costs, of which not to ex-
14 ceed \$34,800,000 shall remain available until September
15 30, 2017: *Provided further*, That \$2,417,863,000 shall be
16 for operations and maintenance, of which not to exceed
17 \$167,900,000 shall remain available until September 30,
18 2017: *Provided further*, That \$504,743,000 shall be for
19 information technology systems development, moderniza-
20 tion, and enhancement, and shall remain available until
21 September 30, 2017: *Provided further*, That amounts
22 made available for information technology systems devel-
23 opment, modernization, and enhancement may not be obli-
24 gated or expended until the Secretary of Veterans Affairs
25 or the Chief Information Officer of the Department of

1 Veterans Affairs submits to the Committees on Appropria-
2 tions of both Houses of Congress a certification of the
3 amounts, in parts or in full, to be obligated and expended
4 for each development project: *Provided further*, That
5 amounts made available for salaries and expenses, oper-
6 ations and maintenance, and information technology sys-
7 tems development, modernization, and enhancement may
8 be transferred among the three subaccounts after the Sec-
9 retary of Veterans Affairs requests from the Committees
10 on Appropriations of both Houses of Congress the author-
11 ity to make the transfer and an approval is issued: *Pro-*
12 *vided further*, That amounts made available for the “Infor-
13 mation Technology Systems” account for development,
14 modernization, and enhancement may be transferred
15 among projects or to newly defined projects: *Provided fur-*
16 *ther*, That no project may be increased or decreased by
17 more than \$1,000,000 of cost prior to submitting a re-
18 quest to the Committees on Appropriations of both Houses
19 of Congress to make the transfer and an approval is
20 issued, or absent a response, a period of 30 days has
21 elapsed: *Provided further*, That funds under this heading
22 may be used by the Interagency Program Office through
23 the Department of Veterans Affairs to define data stand-
24 ards, code sets, and value sets used to enable interoper-
25 ability: *Provided further*, That of the funds made available

1 for information technology systems development, mod-
2 ernization, and enhancement for VistA Evolution, not
3 more than 25 percent may be obligated or expended until
4 the Secretary of Veterans Affairs submits to the Commit-
5 tees on Appropriations of both Houses of Congress, and
6 such Committees approve, a report that describes: (1) the
7 status of and changes to the VistA Evolution program
8 plan dated March 24, 2014 (hereinafter referred to as the
9 “Plan”); the VistA 4 product roadmap dated February 26,
10 2015 (“Roadmap”); and the VistA 4 Incremental Life
11 Cycle Cost Estimate, dated October 26, 2014; (2) any
12 changes to the scope or functionality of projects within
13 the VistA Evolution program as established in the Plan;
14 (3) actual program costs incurred to date; (4) progress
15 in meeting the schedule milestones that have been estab-
16 lished in the Plan; (5) a Project Management Account-
17 ability System (PMAS) Dashboard Progress report that
18 identifies each VistA Evolution project being tracked
19 through PMAS, what functionality it is intended to pro-
20 vide, and what evaluation scores it has received through-
21 out development; (6) the definition being used for inter-
22 operability between the electronic health record systems
23 of the Department of Defense and the Department of Vet-
24 erans Affairs, the metrics to measure the extent of inter-
25 operability, the milestones and timeline associated with

1 achieving interoperability, and the baseline measurements
 2 associated with interoperability; (7) progress toward devel-
 3 oping and implementing all components and levels of
 4 interoperability, including semantic interoperability; (8)
 5 the change management tools in place to facilitate the im-
 6 plementation of VistA Evolution and interoperability; and
 7 (9) any changes to the governance structure for the VistA
 8 Evolution program and its chain of decisionmaking au-
 9 thority: *Provided further*, That the funds made available
 10 under this heading for information technology systems de-
 11 velopment, modernization, and enhancement, shall be for
 12 the projects, and in the amounts, specified under this
 13 heading in the report accompanying this Act.

14 OFFICE OF INSPECTOR GENERAL

15 For necessary expenses of the Office of Inspector
 16 General, to include information technology, in carrying out
 17 the provisions of the Inspector General Act of 1978 (5
 18 U.S.C. App.); \$131,766,000, of which not to exceed
 19 \$12,600,000 shall remain available until September 30,
 20 2017.

21 CONSTRUCTION, MAJOR PROJECTS

22 For constructing, altering, extending, and improving
 23 any of the facilities, including parking projects, under the
 24 jurisdiction or for the use of the Department of Veterans
 25 Affairs, or for any of the purposes set forth in sections

1 316, 2404, 2406 and chapter 81 of title 38, United States
 2 Code, not otherwise provided for, including planning, ar-
 3 chitectural and engineering services, construction manage-
 4 ment services, maintenance or guarantee period services
 5 costs associated with equipment guarantees provided
 6 under the project, services of claims analysts, offsite utility
 7 and storm drainage system construction costs, and site ac-
 8 quisition, where the estimated cost of a project is more
 9 than the amount set forth in section 8104(a)(3)(A) of title
 10 38, United States Code, or where funds for a project were
 11 made available in a previous major project appropriation,
 12 \$561,800,000, of which \$527,800,000 shall remain avail-
 13 able until September 30, 2020, and of which \$34,000,000
 14 shall remain available until expended: *Provided*, That ex-
 15 cept for advance planning activities, including needs as-
 16 sessments which may or may not lead to capital invest-
 17 ments, and other capital asset management related activi-
 18 ties, including portfolio development and management ac-
 19 tivities, and investment strategy studies funded through
 20 the advance planning fund and the planning and design
 21 activities funded through the design fund, including needs
 22 assessments which may or may not lead to capital invest-
 23 ments, and salaries and associated costs of the resident
 24 engineers who oversee those capital investments funded
 25 through this account, and funds provided for the purchase

1 of land for the National Cemetery Administration through
 2 the land acquisition line item; none of the funds made
 3 available under this heading shall be used for any project
 4 which has not been approved by the Congress in the budg-
 5 etary process: *Provided further*, That funds made available
 6 under this heading for fiscal year 2016; for each approved
 7 project shall be obligated: (1) by the awarding of a con-
 8 struction documents contract by September 30, 2016; and
 9 (2) by the awarding of a construction contract by Sep-
 10 tember 30, 2017: *Provided further*, That the Secretary of
 11 Veterans Affairs shall promptly submit to the Committees
 12 on Appropriations of both Houses of Congress a written
 13 report on any approved major construction project for
 14 which obligations are not incurred within the time limita-
 15 tions established above.

16 CONSTRUCTION, MINOR PROJECTS

17 For constructing, altering, extending, and improving
 18 any of the facilities, including parking projects, under the
 19 jurisdiction or for the use of the Department of Veterans
 20 Affairs, including planning and assessments of needs
 21 which may lead to capital investments, architectural and
 22 engineering services, maintenance or guarantee period
 23 services costs associated with equipment guarantees pro-
 24 vided under the project, services of claims analysts, offsite
 25 utility and storm drainage system construction costs, and

1 site acquisition, or for any of the purposes set forth in
 2 sections 316, 2404, 2406, and chapter 81 of title 38,
 3 United States Code, not otherwise provided for, where the
 4 estimated cost of a project is equal to or less than the
 5 amount set forth in section 8104(a)(3)(A) of title 38,
 6 United States Code, \$406,200,000, to remain available
 7 until September 30, 2020, along with unobligated balances
 8 of previous “Construction, Minor Projects” appropriations
 9 which are hereby made available for any project where the
 10 estimated cost is equal to or less than the amount set forth
 11 in such section: *Provided*, That funds made available
 12 under this heading shall be for: (1) repairs to any of the
 13 nonmedical facilities under the jurisdiction or for the use
 14 of the Department which are necessary because of loss or
 15 damage caused by any natural disaster or catastrophe;
 16 and (2) temporary measures necessary to prevent or to
 17 minimize further loss by such causes.

18 GRANTS FOR CONSTRUCTION OF STATE EXTENDED CARE
 19 FACILITIES

20 For grants to assist States to acquire or construct
 21 State nursing home and domiciliary facilities and to re-
 22 model, modify, or alter existing hospital, nursing home,
 23 and domiciliary facilities in State homes, for furnishing
 24 care to veterans as authorized by sections 8131 through

1 ~~8137~~ of title ~~38~~, United States Code, ~~\$80,000,000~~, to re-
 2 main available until expended.

3 ~~GRANTS FOR CONSTRUCTION OF VETERANS CEMETERIES~~

4 For grants to assist States and tribal organizations
 5 in establishing, expanding, or improving veterans ceme-
 6 teries as authorized by section ~~2408~~ of title ~~38~~, United
 7 States Code, ~~\$45,000,000~~, to remain available until ex-
 8 pended.

9 ADMINISTRATIVE PROVISIONS

10 (INCLUDING TRANSFER OF FUNDS)

11 SEC. ~~201~~. Any appropriation for fiscal year 2016 for
 12 “Compensation and Pensions”, “Readjustment Benefits”,
 13 and “Veterans Insurance and Indemnities” may be trans-
 14 ferred as necessary to any other of the mentioned appro-
 15 priations: *Provided*, That before a transfer may take place,
 16 the Secretary of Veterans Affairs shall request from the
 17 Committees on Appropriations of both Houses of Congress
 18 the authority to make the transfer and such Committees
 19 issue an approval, or absent a response, a period of 30
 20 days has elapsed.

21 (INCLUDING TRANSFER OF FUNDS)

22 SEC. ~~202~~. Amounts made available for the Depart-
 23 ment of Veterans Affairs for fiscal year 2016, in this or
 24 any other Act, under the “Medical Services”, “Medical
 25 Support and Compliance”, and “Medical Facilities” ac-

1 counts may be transferred among the accounts: *Provided*,
 2 That any transfers between the “Medical Services” and
 3 “Medical Support and Compliance” accounts of 1 percent
 4 or less of the total amount appropriated to the account
 5 in this or any other Act may take place subject to notifica-
 6 tion from the Secretary of Veterans Affairs to the Com-
 7 mittees on Appropriations of both Houses of Congress of
 8 the amount and purpose of the transfer: *Provided further*,
 9 That any transfers between the “Medical Services” and
 10 “Medical Support and Compliance” accounts in excess of
 11 1 percent, or exceeding the cumulative 1 percent for the
 12 fiscal year, may take place only after the Secretary re-
 13 quests from the Committees on Appropriations of both
 14 Houses of Congress the authority to make the transfer
 15 and an approval is issued: *Provided further*, That any
 16 transfers to or from the “Medical Facilities” account may
 17 take place only after the Secretary requests from the Com-
 18 mittees on Appropriations of both Houses of Congress the
 19 authority to make the transfer and an approval is issued.

20 SEC. 203. Appropriations available in this title for
 21 salaries and expenses shall be available for services au-
 22 thorized by section 3109 of title 5, United States Code;
 23 hire of passenger motor vehicles; lease of a facility or land
 24 or both; and uniforms or allowances therefore, as author-

1 ized by sections 5901 through 5902 of title 5, United
2 States Code.

3 SEC. 204. No appropriations in this title (except the
4 appropriations for “Construction, Major Projects”, and
5 “Construction, Minor Projects”) shall be available for the
6 purchase of any site for or toward the construction of any
7 new hospital or home.

8 SEC. 205. No appropriations in this title shall be
9 available for hospitalization or examination of any persons
10 (except beneficiaries entitled to such hospitalization or ex-
11 amination under the laws providing such benefits to vet-
12 erans, and persons receiving such treatment under sec-
13 tions 7901 through 7904 of title 5, United States Code,
14 or the Robert T. Stafford Disaster Relief and Emergency
15 Assistance Act (42 U.S.C. 5121 et seq.)), unless reim-
16 bursement of the cost of such hospitalization or examina-
17 tion is made to the “Medical Services” account at such
18 rates as may be fixed by the Secretary of Veterans Affairs.

19 SEC. 206. Appropriations available in this title for
20 “Compensation and Pensions”, “Readjustment Benefits”,
21 and “Veterans Insurance and Indemnities” shall be avail-
22 able for payment of prior year accrued obligations re-
23 quired to be recorded by law against the corresponding
24 prior year accounts within the last quarter of fiscal year
25 2015.

1 SEC. 207. Appropriations available in this title shall
 2 be available to pay prior year obligations of corresponding
 3 prior year appropriations accounts resulting from sections
 4 ~~3328(a), 3334, and 3712(a)~~ of title ~~31~~, United States
 5 Code, except that if such obligations are from trust fund
 6 accounts they shall be payable only from “Compensation
 7 and Pensions”.

8 (INCLUDING TRANSFER OF FUNDS)

9 SEC. 208. Notwithstanding any other provision of
 10 law, during fiscal year 2016, the Secretary of Veterans
 11 Affairs shall, from the National Service Life Insurance
 12 Fund under section 1920 of title 38, United States Code,
 13 the Veterans’ Special Life Insurance Fund under section
 14 1923 of title 38, United States Code, and the United
 15 States Government Life Insurance Fund under section
 16 1955 of title 38, United States Code, reimburse the “Gen-
 17 eral Operating Expenses, Veterans Benefits Administra-
 18 tion” and “Information Technology Systems” accounts for
 19 the cost of administration of the insurance programs fi-
 20 nanced through those accounts: *Provided*, That reimburse-
 21 ment shall be made only from the surplus earnings accu-
 22 mulated in such an insurance program during fiscal year
 23 2016 that are available for dividends in that program after
 24 claims have been paid and actuarially determined reserves
 25 have been set aside: *Provided further*, That if the cost of

1 administration of such an insurance program exceeds the
 2 amount of surplus earnings accumulated in that program;
 3 reimbursement shall be made only to the extent of such
 4 surplus earnings: *Provided further*, That the Secretary
 5 shall determine the cost of administration for fiscal year
 6 2016 which is properly allocable to the provision of each
 7 such insurance program and to the provision of any total
 8 disability income insurance included in that insurance pro-
 9 gram.

10 ~~SEC. 209.~~ Amounts deducted from enhanced-use
 11 lease proceeds to reimburse an account for expenses in-
 12 curred by that account during a prior fiscal year for pro-
 13 viding enhanced-use lease services, may be obligated dur-
 14 ing the fiscal year in which the proceeds are received.

15 (INCLUDING TRANSFER OF FUNDS)

16 ~~SEC. 210.~~ Funds available in this title or funds for
 17 salaries and other administrative expenses shall also be
 18 available to reimburse the Office of Resolution Manage-
 19 ment of the Department of Veterans Affairs and the Of-
 20 fice of Employment Discrimination Complaint Adjudica-
 21 tion under section 319 of title 38, United States Code,
 22 for all services provided at rates which will recover actual
 23 costs but not to exceed \$43,700,000 for the Office of Reso-
 24 lution Management and \$3,400,000 for the Office of Em-
 25 ployment Discrimination Complaint Adjudication: *Pro-*

1 *vided*, That payments may be made in advance for services
 2 to be furnished based on estimated costs: *Provided further*,
 3 That amounts received shall be credited to the “General
 4 Administration” and “Information Technology Systems”
 5 accounts for use by the office that provided the service.

6 SEC. 211. No appropriations in this title shall be
 7 available to enter into any new lease of real property if
 8 the estimated annual rental cost is more than \$1,000,000,
 9 unless the Secretary of Veterans Affairs submits a request
 10 to enter into such lease to the Committees on Appropria-
 11 tions of both Houses of Congress and (1) the Committees
 12 approve the request; or (2) the Committees have not re-
 13 jected the request before the date that is 15 days after
 14 the date on which the request is received.

15 SEC. 212. No funds of the Department of Veterans
 16 Affairs shall be available for hospital care, nursing home
 17 care, or medical services provided to any person under
 18 chapter 17 of title 38, United States Code, for a non-serv-
 19 ice-connected disability described in section 1729(a)(2) of
 20 such title, unless that person has disclosed to the Sec-
 21 retary of Veterans Affairs, in such form as the Secretary
 22 may require, current, accurate third-party reimbursement
 23 information for purposes of section 1729 of such title: *Pro-*
 24 *vided*, That the Secretary may recover, in the same man-
 25 ner as any other debt due the United States, the reason-

1 able charges for such care or services from any person who
 2 does not make such disclosure as required: *Provided fur-*
 3 *ther,* That any amounts so recovered for care or services
 4 provided in a prior fiscal year may be obligated by the
 5 Secretary during the fiscal year in which amounts are re-
 6 ceived.

7 (INCLUDING TRANSFER OF FUNDS)

8 SEC. 213. Notwithstanding any other provision of
 9 law, proceeds or revenues derived from enhanced-use leas-
 10 ing activities (including disposal) may be deposited into
 11 the “Construction, Major Projects” and “Construction,
 12 Minor Projects” accounts and be used for construction
 13 (including site acquisition and disposition), alterations,
 14 and improvements of any medical facility under the juris-
 15 diction or for the use of the Department of Veterans Af-
 16 fairs. Such sums as realized are in addition to the amount
 17 provided for in “Construction, Major Projects” and “Con-
 18 struction, Minor Projects”.

19 SEC. 214. Amounts made available under “Medical
 20 Services” are available—

- 21 (1) for furnishing recreational facilities, sup-
 22 plies, and equipment; and
- 23 (2) for funeral expenses, burial expenses, and
 24 other expenses incidental to funerals and burials for
 25 beneficiaries receiving care in the Department.

(INCLUDING TRANSFER OF FUNDS)

SEC. 215. Such sums as may be deposited to the Medical Care Collections Fund pursuant to section 1729A of title 38, United States Code, may be transferred to “Medical Services”, to remain available until expended for the purposes of that account.

SEC. 216. The Secretary of Veterans Affairs may enter into agreements with Indian tribes and tribal organizations which are party to the Alaska Native Health Compact with the Indian Health Service, and Indian tribes and tribal organizations serving rural Alaska which have entered into contracts with the Indian Health Service under the Indian Self Determination and Educational Assistance Act, to provide healthcare, including behavioral health and dental care. The Secretary shall require participating veterans and facilities to comply with all appropriate rules and regulations, as established by the Secretary. The term “rural Alaska” shall mean those lands sited within the external boundaries of the Alaska Native regions specified in sections 7(a)(1)–(4) and (7)–(12) of the Alaska Native Claims Settlement Act, as amended (43 U.S.C. 1606), and those lands within the Alaska Native regions specified in sections 7(a)(5) and 7(a)(6) of the Alaska Native Claims Settlement Act, as amended (43 U.S.C. 1606), which are not within the boundaries of the municipality of Anchor-

1 age, the Fairbanks North Star Borough, the Kenai Penin-
 2 sula Borough or the Matanuska Susitna Borough.

3 (INCLUDING TRANSFER OF FUNDS)

4 SEC. 217. Such sums as may be deposited to the De-
 5 partment of Veterans Affairs Capital Asset Fund pursu-
 6 ant to section 8118 of title 38, United States Code, may
 7 be transferred to the “Construction, Major Projects” and
 8 “Construction, Minor Projects” accounts, to remain avail-
 9 able until expended for the purposes of these accounts.

10 SEC. 218. None of the funds made available in this
 11 title may be used to implement any policy prohibiting the
 12 Directors of the Veterans Integrated Service Networks
 13 from conducting outreach or marketing to enroll new vet-
 14 erans within their respective Networks.

15 SEC. 219. The Secretary of Veterans Affairs shall
 16 submit to the Committees on Appropriations of both
 17 Houses of Congress a quarterly report on the financial
 18 status of the Veterans Health Administration.

19 (INCLUDING TRANSFER OF FUNDS)

20 SEC. 220. Amounts made available under the “Med-
 21 ical Services”, “Medical Support and Compliance”, “Med-
 22 ical Facilities”, “General Operating Expenses, Veterans
 23 Benefits Administration”, “General Administration”, and
 24 “National Cemetery Administration” accounts for fiscal
 25 year 2016 may be transferred to or from the “Information

1 Technology Systems” account: *Provided*, That such trans-
 2 fers may not result in a more than 10 percent aggregate
 3 increase in the total amount made available by this Act
 4 for the “Information Technology Systems” account: *Pro-*
 5 *vided further*, That before a transfer may take place, the
 6 Secretary of Veterans Affairs shall request from the Com-
 7 mittees on Appropriations of both Houses of Congress the
 8 authority to make the transfer and an approval is issued.

9 SEC. 221. Of the amounts made available to the De-
 10 partment of Veterans Affairs for fiscal year 2016, in this
 11 or any other Act, under the “Medical Facilities” account
 12 for nonrecurring maintenance, not more than 20 percent
 13 of the funds made available shall be obligated during the
 14 last 2 months of that fiscal year: *Provided*, That the Sec-
 15 retary may waive this requirement after providing written
 16 notice to the Committees on Appropriations of both
 17 Houses of Congress.

18 (INCLUDING TRANSFER OF FUNDS)

19 SEC. 222. Of the amounts appropriated to the De-
 20 partment of Veterans Affairs for fiscal year 2016 for
 21 “Medical Services”, “Medical Support and Compliance”,
 22 “Medical Facilities”, “Construction, Minor Projects”, and
 23 “Information Technology Systems”, up to \$266,303,000,
 24 plus reimbursements, may be transferred to the Joint De-
 25 partment of Defense-Department of Veterans Affairs

1 Medical Facility Demonstration Fund, established by sec-
 2 tion 1704 of the National Defense Authorization Act for
 3 Fiscal Year 2010 (Public Law 111–84; 123 Stat. 3571)
 4 and may be used for operation of the facilities designated
 5 as combined Federal medical facilities as described by sec-
 6 tion 706 of the Duncan Hunter National Defense Author-
 7 ization Act for Fiscal Year 2009 (Public Law 110–417;
 8 122 Stat. 4500): *Provided*, That additional funds may be
 9 transferred from accounts designated in this section to the
 10 Joint Department of Defense-Department of Veterans Af-
 11 fairs Medical Facility Demonstration Fund upon written
 12 notification by the Secretary of Veterans Affairs to the
 13 Committees on Appropriations of both Houses of Con-
 14 gress: *Provided further*, That section 223 of Title II of
 15 Division I of Public Law 113–235 is repealed.

16 (INCLUDING TRANSFER OF FUNDS)

17 SEC. 223. Of the amounts appropriated to the De-
 18 partment of Veterans Affairs which become available on
 19 October 1, 2016, for “Medical Services”, “Medical Sup-
 20 port and Compliance”, and “Medical Facilities”, up to
 21 \$265,675,000, plus reimbursements, may be transferred
 22 to the Joint Department of Defense-Department of Vet-
 23 erans Affairs Medical Facility Demonstration Fund, es-
 24 tablished by section 1704 of the National Defense Author-
 25 ization Act for Fiscal Year 2010 (Public Law 111–84; 123

1 Stat. 3571) and may be used for operation of the facilities
 2 designated as combined Federal medical facilities as de-
 3 scribed by section 706 of the Duncan Hunter National De-
 4 fense Authorization Act for Fiscal Year 2009 (Public Law
 5 110-417; 122 Stat. 4500): *Provided*, That additional
 6 funds may be transferred from accounts designated in this
 7 section to the Joint Department of Defense-Department
 8 of Veterans Affairs Medical Facility Demonstration Fund
 9 upon written notification by the Secretary of Veterans Af-
 10 fairs to the Committees on Appropriations of both Houses
 11 of Congress.

12 (INCLUDING TRANSFER OF FUNDS)

13 SEC. 224. Such sums as may be deposited to the
 14 Medical Care Collections Fund pursuant to section 1729A
 15 of title 38, United States Code, for healthcare provided
 16 at facilities designated as combined Federal medical facili-
 17 ties as described by section 706 of the Duncan Hunter
 18 National Defense Authorization Act for Fiscal Year 2009
 19 (Public Law 110-417; 122 Stat. 4500) shall also be avail-
 20 able: (1) for transfer to the Joint Department of Defense-
 21 Department of Veterans Affairs Medical Facility Dem-
 22 onstration Fund, established by section 1704 of the Na-
 23 tional Defense Authorization Act for Fiscal Year 2010
 24 (Public Law 111-84; 123 Stat. 3571); and (2) for oper-
 25 ations of the facilities designated as combined Federal

1 medical facilities as described by section 706 of the Dun-
 2 can Hunter National Defense Authorization Act for Fiscal
 3 Year 2009 (Public Law 110–417; 122 Stat. 4500).

4 (INCLUDING TRANSFER OF FUNDS)

5 SEC. 225. Of the amounts available in this title for
 6 “Medical Services”, “Medical Support and Compliance”,
 7 and “Medical Facilities”, a minimum of \$15,000,000 shall
 8 be transferred to the DOD–VA Health Care Sharing In-
 9 centive Fund, as authorized by section 8111(d) of title 38,
 10 United States Code, to remain available until expended,
 11 for any purpose authorized by section 8111 of title 38,
 12 United States Code.

13 (INCLUDING RESCISSIONS OF FUNDS)

14 SEC. 226. (a) Of the funds appropriated in title II
 15 of division I of Public Law 113–235, the following
 16 amounts which became available on October 1, 2015, are
 17 hereby rescinded from the following accounts in the
 18 amounts specified:

19 (1) “Department of Veterans Affairs, Medical
 20 Services”, \$1,400,000,000.

21 (2) “Department of Veterans Affairs, Medical
 22 Support and Compliance”, \$100,000,000.

23 (3) “Department of Veterans Affairs, Medical
 24 Facilities”, \$250,000,000.

1 (b) In addition to amounts provided elsewhere in this
2 Act, an additional amount is appropriated to the following
3 accounts in the amounts specified to remain available until
4 September 30, 2017:

5 (1) “Department of Veterans Affairs, Medical
6 Services”, \$1,400,000,000.

7 (2) “Department of Veterans Affairs, Medical
8 Support and Compliance”, \$100,000,000.

9 (3) “Department of Veterans Affairs, Medical
10 Facilities”, \$250,000,000.

11 SEC. 227. The Secretary of Veterans Affairs shall no-
12 tify the Committees on Appropriations of both Houses of
13 Congress of all bid savings for a major construction
14 project within 15 days of being identified that total at
15 least \$5,000,000, or 5 percent of the programmed amount
16 of the project, whichever is less.

17 SEC. 228. None of the funds made available for
18 “Construction, Major Projects” may be used for a project
19 in excess of the scope specified for that project in the origi-
20 nal justification data provided to the Congress as part of
21 the request for appropriations unless the Secretary of Vet-
22 erans Affairs receives approval from the Committees on
23 Appropriations of both Houses of Congress.

24 SEC. 229. The Secretary of Veterans Affairs shall
25 submit to the Committees on Appropriations of both

1 Houses of Congress a quarterly report that contains the
2 following information from each Veterans Benefits Admin-
3 istration Regional Office: (1) the average time to complete
4 a disability compensation claim; (2) the number of claims
5 pending more than 125 days; (3) error rates; (4) the num-
6 ber of claims personnel; (5) any corrective action taken
7 within the quarter to address poor performance; (6) train-
8 ing programs undertaken; (7) the number and results of
9 Quality Review Team audits; and (8) the number of infor-
10 mal claims that are unprocessed: *Provided*, That each
11 quarterly report shall be submitted no later than 30 days
12 after the end of the respective quarter.

13 SEC. 230. The Secretary of Veterans Affairs shall
14 submit to the Committees on Appropriations of both
15 Houses of Congress a reprogramming request if at any
16 point during fiscal year 2016 the funding allocated for a
17 medical care program that is not estimated through the
18 Enrollee Health Care Projection Model is adjusted by
19 more than \$25,000,000 from the allocation shown in the
20 corresponding congressional budget justification. Amounts
21 may only be reprogrammed as requested under this section
22 if: (1) the Committees on Appropriations of both Houses
23 of Congress approve the request; or (2) the Committees
24 have not rejected the request before the date that is 15
25 days after the date on which the request is received.

SEC. 232. The Secretary of Veterans Affairs shall provide written notification to the Committees on Appropriations of both Houses of Congress 15 days prior to organizational changes which result in the transfer of 25 or more full-time equivalents from one organizational unit of the Department of Veterans Affairs to another.

~~(RESCISSION OF FUNDS)~~

21 ~~SEC. 233.~~ (a) There is hereby rescinded an aggregate
22 amount of \$101,000,000 from the total budget authority
23 provided for fiscal year 2016 for discretionary accounts
24 of the Department of Veterans Affairs in—

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1 (2) any advance appropriation for fiscal year
2 2016 in prior appropriation Acts.

3 (b) The Secretary shall submit to the Committees on
4 Appropriations of both Houses of Congress a report speci-
5 fying the account and amount of each rescission not later
6 than 20 days following enactment of this Act.

7 SEC. 234. The Secretary of Veterans Affairs shall
8 provide on a quarterly basis to the Committees on Appro-
9 priations of both Houses of Congress notification of any
10 single national outreach and awareness marketing cam-
11 paign in which obligations exceed \$2,000,000.

12 SEC. 235. None of the funds available to the Depart-
13 ment of Veterans Affairs, in this or any other Act, may
14 be used to replace the current system by which the Vet-
15 erans Integrated Service Networks select and contract for
16 diabetes monitoring supplies and equipment.

17 (INCLUDING TRANSFER OF FUNDS)

18 SEC. 236. The Secretary of Veterans Affairs, upon
19 determination that such action is necessary to address
20 needs of the Veterans Health Administration, may trans-
21 fer to the “Medical Services” account any discretionary
22 appropriations made available for fiscal year 2016 in this
23 title (except appropriations made to the “General Oper-
24 ating Expenses, Veterans Benefits Administration” ac-
25 count) or any discretionary unobligated balances within

1 the Department of Veterans Affairs, including those ap-
2 propriated for fiscal year 2016, that were provided in ad-
3 vance by appropriations Acts: *Provided*, That transfers
4 shall be made only with the approval of the Office of Man-
5 agement and Budget: *Provided further*, That the transfer
6 authority provided in this section is in addition to any
7 other transfer authority provided by law: *Provided further*,
8 That no amounts may be transferred from amounts that
9 were designated by Congress as an emergency requirement
10 pursuant to a concurrent resolution on the budget or the
11 Balanced Budget and Emergency Deficit Control Act of
12 1985: *Provided further*, That such authority to transfer
13 may not be used unless for higher priority items, based
14 on emergent healthcare requirements, than those for
15 which originally appropriated and in no case where the
16 item for which funds are requested has been denied by
17 Congress: *Provided further*, That, upon determination that
18 all or part of the funds transferred from an appropriation
19 are not necessary, such amounts may be transferred back
20 to that appropriation and shall be available for the same
21 purposes as originally appropriated: *Provided further*,
22 That before a transfer may take place, the Secretary of
23 Veterans Affairs shall request from the Committees on
24 Appropriations of both Houses of Congress the authority
25 to make the transfer and receive approval of that request.

(INCLUDING TRANSFER OF FUNDS)

1 SEC. 237. Amounts made available for the Depart-
 2 ment of Veterans Affairs for fiscal year 2016, under the
 3 “Board of Veterans Appeals” and the “General Operating
 4 Expenses, Veterans Benefits Administration” accounts
 5 may be transferred between such accounts: *Provided*, That
 6 before a transfer may take place, the Secretary of Vet-
 7 erans Affairs shall request from the Committees on Appro-
 8 priations of both Houses of Congress the authority to
 9 make the transfer and receive approval from such Com-
 10 mittees for such request.

(RESCISSION OF FUNDS)

12 SEC. 238. Of the unobligated balances available with-
 13 in the “DOD–VA Health Care Sharing Incentive Fund”,
 14 \$15,000,000 are hereby rescinded.

16 SEC. 239. The Secretary of Veterans Affairs may not
 17 reprogram funds among major construction projects or
 18 programs if such instance of reprogramming will exceed
 19 \$5,000,000, unless such reprogramming is approved by
 20 the Committees on Appropriations of both Houses of Con-
 21 gress.

(RESCISSIONS OF FUNDS)

23 SEC. 240. Of the discretionary funds made available
 24 in Public Law 113–235 for the Department of Veterans
 25 Affairs for fiscal year 2016, \$197,923,000 are rescinded

1 from “Medical Services”, \$42,272,000 are rescinded from
2 “Medical Support and Compliance”, and \$15,353,000 are
3 rescinded from “Medical Facilities”.

4 ~~SEC. 241.~~ The amounts otherwise made available by
5 this Act for the following accounts of the Department of
6 Veterans Affairs are hereby reduced by the following
7 amounts:

8 (1) ~~“Veterans Benefits Administration—Vet-~~
9 ~~erans Housing Benefit Program Fund”, \$3,098,000.~~

10 (2) ~~“Veterans Benefits Administration—Voca-~~
11 ~~tional Rehabilitation Loans Program Account”,~~
12 ~~\$10,000.~~

13 (3) ~~“Veterans Benefits Administration—Native~~
14 ~~American Veteran Housing Loan Program Ac-~~
15 ~~count”, \$25,000.~~

16 (4) ~~“Veterans Health Administration—Medical~~
17 ~~and Prosthetic Research”, \$3,109,000.~~

18 (5) ~~“National Cemetery Administration”,~~
19 ~~\$1,654,000.~~

20 (6) ~~“Departmental Administration—General~~
21 ~~Administration”, \$3,877,000.~~

22 (7) ~~“Departmental Administration—Board of~~
23 ~~Veterans Appeals”, \$786,000.~~

1 (8) “Departmental Administration—General
2 Operating Expenses, Veterans Benefits Administra-
3 tion”, ~~\$36,568,000.~~

4 (9) “Departmental Administration—Informa-
5 tion Technology Systems”, ~~\$7,958,000.~~

6 (10) “Departmental Administration—Office of
7 Inspector General”, ~~\$993,000.~~

8 TITLE III

9 RELATED AGENCIES

10 AMERICAN BATTLE MONUMENTS COMMISSION

11 SALARIES AND EXPENSES

12 For necessary expenses, not otherwise provided for,
13 of the American Battle Monuments Commission, including
14 the acquisition of land or interest in land in foreign coun-
15 tries; purchases and repair of uniforms for caretakers of
16 national cemeteries and monuments outside of the United
17 States and its territories and possessions; rent of office
18 and garage space in foreign countries; purchase (one-for-
19 one replacement basis only) and hire of passenger motor
20 vehicles; not to exceed \$7,500 for official reception and
21 representation expenses; and insurance of official motor
22 vehicles in foreign countries, when required by law of such
23 countries, ~~\$75,100,000,~~ to remain available until ex-
24 pended.

1 FOREIGN CURRENCY FLUCTUATIONS ACCOUNT

2 For necessary expenses, not otherwise provided for,
 3 of the American Battle Monuments Commission, such
 4 sums as may be necessary, to remain available until ex-
 5 pended, for purposes authorized by section 2109 of title
 6 36, United States Code.

7 UNITED STATES COURT OF APPEALS FOR VETERANS

8 CLAIMS

9 SALARIES AND EXPENSES

10 For necessary expenses for the operation of the
 11 United States Court of Appeals for Veterans Claims as
 12 authorized by sections 7251 through 7299 of title 38,
 13 United States Code, ~~\$32,141,000: Provided, That~~
 14 ~~\$2,500,000~~ shall be available for the purpose of providing
 15 financial assistance as described, and in accordance with
 16 the process and reporting procedures set forth, under this
 17 heading in Public Law 102-229.

18 DEPARTMENT OF DEFENSE—CIVIL

19 CEMETERIAL EXPENSES, ARMY

20 SALARIES AND EXPENSES

21 For necessary expenses for maintenance, operation,
 22 and improvement of Arlington National Cemetery and Sol-
 23 diers' and Airmen's Home National Cemetery, including
 24 the purchase or lease of passenger motor vehicles for re-
 25 placement on a one-for-one basis only, and not to exceed

1 \$1,000 for official reception and representation expenses;
2 \$70,800,000, of which not to exceed \$5,000,000 shall re-
3 main available until September 30, 2017. In addition,
4 such sums as may be necessary for parking maintenance,
5 repairs and replacement, to be derived from the “Lease
6 of Department of Defense Real Property for Defense
7 Agencies” account.

8 ARMED FORCES RETIREMENT HOME

9 TRUST FUND

10 For expenses necessary for the Armed Forces Retire-
11 ment Home to operate and maintain the Armed Forces
12 Retirement Home—Washington, District of Columbia,
13 and the Armed Forces Retirement Home—Gulfport, Mis-
14 sissippi, to be paid from funds available in the Armed
15 Forces Retirement Home Trust Fund, \$64,300,000, of
16 which \$1,000,000 shall remain available until expended
17 for construction and renovation of the physical plants at
18 the Armed Forces Retirement Home—Washington, Dis-
19 trict of Columbia, and the Armed Forces Retirement
20 Home—Gulfport, Mississippi.

21 ADMINISTRATIVE PROVISIONS

22 SEC. 301. Funds appropriated in this Act under the
23 heading “Department of Defense—Civil, Cemeterial Ex-
24 penses, Army”, may be provided to Arlington County, Vir-
25 ginia, for the relocation of the federally owned water main

1 at Arlington National Cemetery, making additional land
2 available for ground burials.

3 ~~SEC. 302.~~ Amounts deposited during the current fis-
4 cal year into the special account established under 10
5 U.S.C. 4727 are appropriated and shall be available until
6 expended to support activities at the Army National Mili-
7 tary Cemeteries.

8 TITLE IV

9 OVERSEAS CONTINGENCY OPERATIONS

10 DEPARTMENT OF DEFENSE

11 MILITARY CONSTRUCTION, NAVY AND MARINE CORPS

12 For an additional amount for “Military Construction,
13 Navy and Marine Corps”, \$244,004,000 to remain avail-
14 able until September 30, 2020, for projects outside of the
15 United States: *Provided*, That such amount is designated
16 by the Congress for Overseas Contingency Operations/
17 Global War on Terrorism pursuant to section
18 251(b)(2)(A)(ii) of the Balanced Budget and Emergency
19 Deficit Control Act of 1985.

20 MILITARY CONSTRUCTION, AIR FORCE

21 For an additional amount for “Military Construction,
22 Air Force” \$75,000,000 to remain available until Sep-
23 tember 30, 2020, for projects outside of the United States:
24 *Provided*, That such amount is designated by the Congress
25 for Overseas Contingency Operations/Global War on Ter-

1 rorism pursuant to section 215(b)(2)(A)(ii) of the Bal-
 2 anced Budget and Emergency Deficit Control Act of 1985.

3 ~~MILITARY CONSTRUCTION, DEFENSE-WIDE~~

4 For an additional amount for “Military Construction,
 5 Defense-Wide”, \$212,996,000 to remain available until
 6 September 30, 2020, for projects outside of the United
 7 States: *Provided*, That such amount is designated by the
 8 Congress for Overseas Contingency Operations/Global
 9 War on Terrorism pursuant to section 251(b)(2)(A)(ii) of
 10 the Balanced Budget and Emergency Deficit Control Act
 11 of 1985.

12 ~~TITLE V~~

13 ~~GENERAL PROVISIONS~~

14 ~~SEC. 501.~~ No part of any appropriation contained in
 15 this Act shall remain available for obligation beyond the
 16 current fiscal year unless expressly so provided herein.

17 ~~SEC. 502.~~ None of the funds made available in this
 18 Act may be used for any program, project, or activity,
 19 when it is made known to the Federal entity or official
 20 to which the funds are made available that the program,
 21 project, or activity is not in compliance with any Federal
 22 law relating to risk assessment, the protection of private
 23 property rights, or unfunded mandates.

24 ~~SEC. 503.~~ All departments and agencies funded under
 25 this Act are encouraged, within the limits of the existing

1 statutory authorities and funding, to expand their use of
2 “E-Commerce” technologies and procedures in the con-
3 duct of their business practices and public service activi-
4 ties.

5 SEC. 504. Unless stated otherwise, all reports and no-
6 tifications required by this Act shall be submitted to the
7 Subcommittee on Military Construction and Veterans Af-
8 fairs, and Related Agencies of the Committee on Appro-
9 priations of the House of Representatives and the Sub-
10 committee on Military Construction and Veterans Affairs,
11 and Related Agencies of the Committee on Appropriations
12 of the Senate.

13 SEC. 505. None of the funds made available in this
14 Act may be transferred to any department, agency, or in-
15 strumentality of the United States Government except
16 pursuant to a transfer made by, or transfer authority pro-
17 vided in, this or any other appropriations Act.

18 SEC. 506. None of the funds made available in this
19 Act may be used for a project or program named for an
20 individual serving as a Member, Delegate, or Resident
21 Commissioner of the United States House of Representa-
22 tives.

23 SEC. 507. (a) Any agency receiving funds made avail-
24 able in this Act, shall, subject to subsections (b) and (c),
25 post on the public Web site of that agency any report re-

1 quired to be submitted by the Congress in this or any
2 other Act, upon the determination by the head of the agen-
3 cy that it shall serve the national interest.

4 (b) Subsection (a) shall not apply to a report if—

5 (1) the public posting of the report com-
6 promises national security; or

7 (2) the report contains confidential or propri-
8 etary information.

9 (c) The head of the agency posting such report shall
10 do so only after such report has been made available to
11 the requesting Committee or Committees of Congress for
12 no less than 45 days.

13 SEC. 508. (a) None of the funds made available in
14 this Act may be used to maintain or establish a computer
15 network unless such network blocks the viewing,
16 downloading, and exchanging of pornography.

17 (b) Nothing in subsection (a) shall limit the use of
18 funds necessary for any Federal, State, tribal, or local law
19 enforcement agency or any other entity carrying out crimi-
20 nal investigations, prosecution, or adjudication activities.

21 SEC. 509. None of the funds made available in this
22 Act may be used by an agency of the executive branch
23 to pay for first-class travel by an employee of the agency
24 in contravention of sections 301–10.122 through 301–
25 10.124 of title 41, Code of Federal Regulations.

1 SEC. 510. None of the funds made available in this
2 Act may be used to execute a contract for goods or serv-
3 ices, including construction services, where the contractor
4 has not complied with Executive Order No. 12989.

5 SEC. 511. None of the funds made available by this
6 Act may be used by the Department of Defense or the
7 Department of Veterans Affairs to lease or purchase new
8 light duty vehicles for any executive fleet, or for an agen-
9 cy's fleet inventory, except in accordance with Presidential
10 Memorandum—Federal Fleet Performance, dated May
11 24, 2011.

12 SEC. 512. (a) IN GENERAL.—None of the funds ap-
13 propriated or otherwise made available to the Department
14 of Defense in this Act may be used to construct, renovate,
15 or expand any facility in the United States, its territories,
16 or possessions to house any individual detained at United
17 States Naval Station, Guantánamo Bay, Cuba, for the
18 purposes of detention or imprisonment in the custody or
19 under the control of the Department of Defense.

20 (b) The prohibition in subsection (a) shall not apply
21 to any modification of facilities at United States Naval
22 Station, Guantánamo Bay, Cuba.

23 (c) An individual described in this subsection is any
24 individual who, as of June 24, 2009, is located at United
25 States Naval Station, Guantánamo Bay, Cuba, and who—

1 (1) is not a citizen of the United States or a
 2 member of the Armed Forces of the United States;
 3 and

4 (2) is—

5 (A) in the custody or under the effective
 6 control of the Department of Defense; or

7 (B) otherwise under detention at United
 8 States Naval Station, Guantánamo Bay, Cuba.

9 SPENDING REDUCTION ACCOUNT

10 ~~SEC. 513.~~ The amount by which the applicable alloca-
 11 tion of new budget authority made by the Committee on
 12 Appropriations of the House of Representatives under sec-
 13 tion 302(b) of the Congressional Budget Act of 1974 ex-
 14 ceeds the amount of proposed new budget authority is \$0.

15 ~~SEC. 514.~~ The amounts otherwise provided by this
 16 Act are revised by reducing the amount made available
 17 for “Department of Veterans Affairs—Departmental Ad-
 18 ministration—Information Technology Services” (and the
 19 amount specified under such heading for operations and
 20 maintenance); and by increasing the amount made avail-
 21 able for “Veterans Health Administration—Medical Serv-
 22 ices”, by \$2,000,000.

23 ~~SEC. 515.~~ None of the funds made available by this
 24 Act may be used to carry out the closure or transfer of
 25 the United States Naval Station, Guantánamo Bay, Cuba.

1 ~~SEC. 516.~~ None of the funds made available by this
2 Act may be used to carry out the Appraised Value Offer
3 program of the Department of Veterans Affairs.

4 ~~SEC. 517.~~ None of the funds made available by this
5 Act may be used by the Secretary of Veterans Affairs to
6 pay a performance award under section 5384 of title 5,
7 United States Code.

8 ~~SEC. 518.~~ None of the funds made available by this
9 Act for benefits for homeless veterans and training and
10 outreach programs may be used by the Secretary of Vet-
11 erans Affairs in contravention of subchapter III of chapter
12 20 of title 38, United States Code.

13 ~~SEC. 519.~~ Not more than \$4,400,000 of the funds
14 provided by this Act under the heading “Department of
15 Veterans Affairs—Departmental Administration—Gen-
16 eral Administration” may be used for the Office of Con-
17 gressional and Legislative Affairs, and the amount other-
18 wise provided under such heading is hereby reduced by
19 \$1,500,000.

20 ~~SEC. 520.~~ None of the funds made available by this
21 Act may be used to end, suspend, or relocate hospital-
22 based services with respect to a health care facility of the
23 Department of Veterans Affairs that is—

1 ~~(1) the subject of an environmental impact~~
2 ~~statement in accordance with the National Environ-~~
3 ~~mental Policy Act of 1969 (42 U.S.C. 4321 et seq.);~~

4 ~~(2) designated as a National Historic Land-~~
5 ~~mark by the National Park Service; and~~

6 ~~(3) located in a highly rural area.~~

7 ~~SEC. 521. None of the funds made available by this~~
8 ~~Act may be used to propose, plan for, or execute a new~~
9 ~~or additional Base Realignment and Closure (BRAC)~~
10 ~~round.~~

11 ~~SEC. 522. None of the funds made available by this~~
12 ~~Act may be used to enter into a contract with any offeror~~
13 ~~or any of its principals if the offeror certifies, as required~~
14 ~~by Federal Acquisition Regulation, that the offeror or any~~
15 ~~of its principals:~~

16 ~~(A) within a 3-year period preceding this offer~~
17 ~~has been convicted of or had a civil judgment ren-~~
18 ~~dered against it for: commission of fraud or a crimi-~~
19 ~~nal offense in connection with obtaining, attempting~~
20 ~~to obtain, or performing a public (Federal, State, or~~
21 ~~local) contract or subcontract; violation of Federal or~~
22 ~~State antitrust statutes relating to the submission of~~
23 ~~offers; or commission of embezzlement, theft, for-~~
24 ~~gery, bribery, falsification or destruction of records,~~
25 ~~making false statements, tax evasion, violating Fed-~~

1 eral criminal tax laws, or receiving stolen property;
2 or

3 (B) are presently indicted for, or otherwise
4 criminally or civilly charged by a governmental enti-
5 ty with, commission of any of the offenses enumer-
6 ated above in subsection (A); or

7 (C) within a 3-year period preceding this offer,
8 has been notified of any delinquent Federal taxes in
9 an amount that exceeds \$3,000 for which the liabil-
10 ity remains unsatisfied.

11 SEC. 523. None of the funds made available by this
12 Act may be used in contravention of subtitle D of title
13 VIII of the Carl Levin and Howard P. “Buck” McKeon
14 National Defense Authorization Act for Fiscal Year 2015.

15 SEC. 524. None of the funds made available by this
16 Act may be used to pay an award or bonus under chapter
17 45 or 53 of title 5, United States Code, to any employee
18 of the Office of Construction and Facilities Management
19 of the Department of Veterans Affairs.

20 SEC. 525. None of the funds made available by this
21 Act may be used to pay the salary of any employee of
22 the Department of Veterans Affairs who is a member of
23 an Amputee Clinic Team (as described in VHA Handbook
24 1173.3, “Amputee Clinic Teams and Artificial Limbs”,
25 dated June 4, 2004) and who is not credentialed in ac-

1 cordance with VHA Directive 2012-030, “Credentialing
2 of Health Care Professionals”, issued on October 11,
3 2012.

4 SEC. 526. None of the funds made available by this
5 Act may be used to transfer any funds from the Veterans
6 Choice Fund established by section 802 of the Veterans
7 Access, Choice, and Accountability Act of 2014 (Public
8 Law 113-146; 128 Stat. 1802).

9 SEC. 527. None of the funds made available by this
10 Act may be used to—

11 (1) carry out the memorandum from the Vet-
12 erans Benefit Administration known as Fast Letter
13 13-10, issued on May 20, 2013; or

14 (2) create or maintain any patient record-keep-
15 ing system other than those currently approved by
16 the Department of Veterans Affairs Central Office
17 in Washington, D.C.

18 SEC. 528. For an additional amount for “Department
19 of Veterans Affairs—Departmental Administration—Gen-
20 eral Operating Expenses, Veterans Benefits Administra-
21 tion”, there is hereby appropriated, and the amount other-
22 wise provided by this Act for “Department of Veterans
23 Affairs—Departmental Administration—General Admin-
24 istration” is hereby reduced by, \$5,000,000.

1 This Act may be cited as the “Military Construction
2 and Veterans Affairs and Related Agencies Appropriations
3 Act, 2016”.

4 *That the following sums are appropriated, out of any*
5 *money in the Treasury not otherwise appropriated, for*
6 *military construction, the Department of Veterans Affairs,*
7 *and related agencies for the fiscal year ending September*
8 *30, 2016, and for other purposes, namely:*

9 *TITLE I*

10 *DEPARTMENT OF DEFENSE*

11 *MILITARY CONSTRUCTION, ARMY*

12 *For acquisition, construction, installation, and equip-*
13 *ment of temporary or permanent public works, military in-*
14 *stallations, facilities, and real property for the Army as*
15 *currently authorized by law, including personnel in the*
16 *Army Corps of Engineers and other personal services nec-*
17 *essary for the purposes of this appropriation, and for con-*
18 *struction and operation of facilities in support of the func-*
19 *tions of the Commander in Chief, \$663,245,000, to remain*
20 *available until September 30, 2020: Provided, That, of this*
21 *amount, not to exceed \$109,245,000 shall be available for*
22 *study, planning, design, architect and engineer services,*
23 *and host nation support, as authorized by law, unless the*
24 *Secretary of the Army determines that additional obliga-*
25 *tions are necessary for such purposes and notifies the Com-*

1 *mittees on Appropriations of both Houses of Congress of the*
 2 *determination and the reasons therefor.*

3 *MILITARY CONSTRUCTION, NAVY AND MARINE CORPS*

4 *For acquisition, construction, installation, and equip-*
 5 *ment of temporary or permanent public works, naval in-*
 6 *stallations, facilities, and real property for the Navy and*
 7 *Marine Corps as currently authorized by law, including*
 8 *personnel in the Naval Facilities Engineering Command*
 9 *and other personal services necessary for the purposes of this*
 10 *appropriation, \$1,619,699,000, to remain available until*
 11 *September 30, 2020: Provided, That, of this amount, not*
 12 *to exceed \$91,649,000 shall be available for study, planning,*
 13 *design, and architect and engineer services, as authorized*
 14 *by law, unless the Secretary of the Navy determines that*
 15 *additional obligations are necessary for such purposes and*
 16 *notifies the Committees on Appropriations of both Houses*
 17 *of Congress of the determination and the reasons therefor.*

18 *MILITARY CONSTRUCTION, AIR FORCE*

19 *For acquisition, construction, installation, and equip-*
 20 *ment of temporary or permanent public works, military in-*
 21 *stallations, facilities, and real property for the Air Force*
 22 *as currently authorized by law, \$1,389,185,000, to remain*
 23 *available until September 30, 2020: Provided, That, of this*
 24 *amount, not to exceed \$89,164,000 shall be available for*
 25 *study, planning, design, and architect and engineer serv-*

ices, as authorized by law, unless the Secretary of Air Force determines that additional obligations are necessary for such purposes and notifies the Committees on Appropriations of both Houses of Congress of the determination and the reasons therefor.

MILITARY CONSTRUCTION, DEFENSE-WIDE

(INCLUDING TRANSFER OF FUNDS)

For acquisition, construction, installation, and equipment of temporary or permanent public works, installations, facilities, and real property for activities and agencies of the Department of Defense (other than the military departments), as currently authorized by law, \$2,290,767,000, to remain available until September 30, 2020: Provided, That such amounts of this appropriation as may be determined by the Secretary of Defense may be transferred to such appropriations of the Department of Defense available for military construction or family housing as the Secretary may designate, to be merged with and to be available for the same purposes, and for the same time period, as the appropriation or fund to which transferred: Provided further, That, of the amount appropriated, not to exceed \$160,404,000 shall be available for study, planning, design, and architect and engineer services, as authorized by law, unless the Secretary of Defense determines that additional obligations are necessary for such purposes and no-

1 *tifies the Committees on Appropriations of both Houses of*
 2 *Congress of the determination and the reasons therefor.*

3 *MILITARY CONSTRUCTION, ARMY NATIONAL GUARD*

4 *For construction, acquisition, expansion, rehabilita-*
 5 *tion, and conversion of facilities for the training and ad-*
 6 *ministration of the Army National Guard, and contribu-*
 7 *tions therefor, as authorized by chapter 1803 of title 10,*
 8 *United States Code, and Military Construction Authoriza-*
 9 *tion Acts, \$197,237,000, to remain available until Sep-*
 10 *tember 30, 2020: Provided, That, of the amount appro-*
 11 *priated, not to exceed \$20,337,000 shall be available for*
 12 *study, planning, design, and architect and engineer serv-*
 13 *ices, as authorized by law, unless the Director of the Army*
 14 *National Guard determines that additional obligations are*
 15 *necessary for such purposes and notifies the Committees on*
 16 *Appropriations of both Houses of Congress of the determina-*
 17 *tion and the reasons therefor.*

18 *MILITARY CONSTRUCTION, AIR NATIONAL GUARD*

19 *For construction, acquisition, expansion, rehabilita-*
 20 *tion, and conversion of facilities for the training and ad-*
 21 *ministration of the Air National Guard, and contributions*
 22 *therefor, as authorized by chapter 1803 of title 10, United*
 23 *States Code, and Military Construction Authorization Acts,*
 24 *\$138,738,000, to remain available until September 30,*
 25 *2020: Provided, That, of the amount appropriated, not to*

1 exceed \$5,104,000 shall be available for study, planning, de-
 2 sign, and architect and engineer services, as authorized by
 3 law, unless the Director of the Air National Guard deter-
 4 mines that additional obligations are necessary for such
 5 purposes and notifies the Committees on Appropriations of
 6 both Houses of Congress of the determination and the rea-
 7 sons therefor.

8 *MILITARY CONSTRUCTION, ARMY RESERVE*

9 *For construction, acquisition, expansion, rehabilita-*
 10 *tion, and conversion of facilities for the training and ad-*
 11 *ministration of the Army Reserve as authorized by chapter*
 12 *1803 of title 10, United States Code, and Military Con-*
 13 *struction Authorization Acts, \$113,595,000, to remain*
 14 *available until September 30, 2020: Provided, That, of the*
 15 *amount appropriated, not to exceed \$9,318,000 shall be*
 16 *available for study, planning, design, and architect and en-*
 17 *gineer services, as authorized by law, unless the Chief of*
 18 *the Army Reserve determines that additional obligations*
 19 *are necessary for such purposes and notifies the Committees*
 20 *on Appropriations of both Houses of Congress of the deter-*
 21 *mination and the reasons therefor.*

22 *MILITARY CONSTRUCTION, NAVY RESERVE*

23 *For construction, acquisition, expansion, rehabilita-*
 24 *tion, and conversion of facilities for the training and ad-*
 25 *ministration of the reserve components of the Navy and Ma-*

1 *rine Corps as authorized by chapter 1803 of title 10, United*
2 *States Code, and Military Construction Authorization Acts,*
3 *\$36,078,000, to remain available until September 30, 2020:*
4 *Provided, That, of the amount appropriated, not to exceed*
5 *\$2,208,000 shall be available for study, planning, design,*
6 *and architect and engineer services, as authorized by law,*
7 *unless the Secretary of the Navy determines that additional*
8 *obligations are necessary for such purposes and notifies the*
9 *Committees on Appropriations of both Houses of Congress*
10 *of the determination and the reasons therefor.*

11 *MILITARY CONSTRUCTION, AIR FORCE RESERVE*

12 *For construction, acquisition, expansion, rehabilita-*
13 *tion, and conversion of facilities for the training and ad-*
14 *ministration of the Air Force Reserve as authorized by*
15 *chapter 1803 of title 10, United States Code, and Military*
16 *Construction Authorization Acts, \$65,021,000, to remain*
17 *available until September 30, 2020: Provided, That, of the*
18 *amount appropriated, not to exceed \$13,400,000 shall be*
19 *available for study, planning, design, and architect and en-*
20 *gineer services, as authorized by law, unless the Chief of*
21 *the Air Force Reserve determines that additional obliga-*
22 *tions are necessary for such purposes and notifies the Com-*
23 *mittees on Appropriations of both Houses of Congress of the*
24 *determination and the reasons therefor.*

1 *NORTH ATLANTIC TREATY ORGANIZATION*

2 *SECURITY INVESTMENT PROGRAM*

3 *For the United States share of the cost of the North*
 4 *Atlantic Treaty Organization Security Investment Pro-*
 5 *gram for the acquisition and construction of military facili-*
 6 *ties and installations (including international military*
 7 *headquarters) and for related expenses for the collective de-*
 8 *fense of the North Atlantic Treaty Area as authorized by*
 9 *section 2806 of title 10, United States Code, and Military*
 10 *Construction Authorization Acts, \$120,000,000, to remain*
 11 *available until expended.*

12 *FAMILY HOUSING CONSTRUCTION, ARMY*

13 *For expenses of family housing for the Army for con-*
 14 *struction, including acquisition, replacement, addition, ex-*
 15 *pansion, extension, and alteration, as authorized by law,*
 16 *\$99,695,000, to remain available until September 30, 2020.*

17 *FAMILY HOUSING OPERATION AND MAINTENANCE, ARMY*

18 *For expenses of family housing for the Army for oper-*
 19 *ation and maintenance, including debt payment, leasing,*
 20 *minor construction, principal and interest charges, and in-*
 21 *surance premiums, as authorized by law, \$393,511,000.*

22 *FAMILY HOUSING CONSTRUCTION, NAVY AND MARINE*

23 *CORPS*

24 *For expenses of family housing for the Navy and Ma-*
 25 *rine Corps for construction, including acquisition, replace-*

1 *ment, addition, expansion, extension, and alteration, as au-*
2 *thorized by law, \$16,541,000, to remain available until*
3 *September 30, 2020.*

4 *FAMILY HOUSING OPERATION AND MAINTENANCE, NAVY*
5 *AND MARINE CORPS*

6 *For expenses of family housing for the Navy and Ma-*
7 *rine Corps for operation and maintenance, including debt*
8 *payment, leasing, minor construction, principal and inter-*
9 *est charges, and insurance premiums, as authorized by law,*
10 *\$353,036,000.*

11 *FAMILY HOUSING CONSTRUCTION, AIR FORCE*

12 *For expenses of family housing for the Air Force for*
13 *construction, including acquisition, replacement, addition,*
14 *expansion, extension, and alteration, as authorized by law,*
15 *\$160,498,000, to remain available until September 30,*
16 *2020.*

17 *FAMILY HOUSING OPERATION AND MAINTENANCE, AIR*
18 *FORCE*

19 *For expenses of family housing for the Air Force for*
20 *operation and maintenance, including debt payment, leas-*
21 *ing, minor construction, principal and interest charges,*
22 *and insurance premiums, as authorized by law,*
23 *\$331,232,000.*

7 DEPARTMENT OF DEFENSE BASE CLOSURE ACCOUNT

13 *ADMINISTRATIVE PROVISIONS*

SEC. 102. Funds made available in this title for construction shall be available for hire of passenger motor vehicles.

SEC. 103. Funds made available in this title for construction may be used for advances to the Federal Highway Administration, Department of Transportation, for the con-

1 *struction of access roads as authorized by section 210 of*
2 *title 23, United States Code, when projects authorized there-*
3 *in are certified as important to the national defense by the*
4 *Secretary of Defense.*

5 *SEC. 104. None of the funds made available in this*
6 *title may be used to begin construction of new bases in the*
7 *United States for which specific appropriations have not*
8 *been made.*

9 *SEC. 105. None of the funds made available in this*
10 *title shall be used for purchase of land or land easements*
11 *in excess of 100 percent of the value as determined by the*
12 *Army Corps of Engineers or the Naval Facilities Engineer-*
13 *ing Command, except: (1) where there is a determination*
14 *of value by a Federal court; (2) purchases negotiated by*
15 *the Attorney General or the designee of the Attorney Gen-*
16 *eral; (3) where the estimated value is less than \$25,000; or*
17 *(4) as otherwise determined by the Secretary of Defense to*
18 *be in the public interest.*

19 *SEC. 106. None of the funds made available in this*
20 *title shall be used to: (1) acquire land; (2) provide for site*
21 *preparation; or (3) install utilities for any family housing,*
22 *except housing for which funds have been made available*
23 *in annual Acts making appropriations for military con-*
24 *struction.*

1 *SEC. 107. None of the funds made available in this*
2 *title for minor construction may be used to transfer or relo-*
3 *cate any activity from one base or installation to another,*
4 *without prior notification to the Committees on Appropria-*
5 *tions of both Houses of Congress.*

6 *SEC. 108. None of the funds made available in this*
7 *title may be used for the procurement of steel for any con-*
8 *struction project or activity for which American steel pro-*
9 *ducers, fabricators, and manufacturers have been denied the*
10 *opportunity to compete for such steel procurement.*

11 *SEC. 109. None of the funds available to the Depart-*
12 *ment of Defense for military construction or family housing*
13 *during the current fiscal year may be used to pay real prop-*
14 *erty taxes in any foreign nation.*

15 *SEC. 110. None of the funds made available in this*
16 *title may be used to initiate a new installation overseas*
17 *without prior notification to the Committees on Appropria-*
18 *tions of both Houses of Congress.*

19 *SEC. 111. None of the funds made available in this*
20 *title may be obligated for architect and engineer contracts*
21 *estimated by the Government to exceed \$500,000 for projects*
22 *to be accomplished in Japan, in any North Atlantic Treaty*
23 *Organization member country, or in countries bordering the*
24 *Arabian Gulf, unless such contracts are awarded to United*

1 *States firms or United States firms in joint venture with*
2 *host nation firms.*

3 *SEC. 112. None of the funds made available in this*
4 *title for military construction in the United States terri-*
5 *ories and possessions in the Pacific and on Kwajalein*
6 *Atoll, or in countries bordering the Arabian Gulf, may be*
7 *used to award any contract estimated by the Government*
8 *to exceed \$1,000,000 to a foreign contractor: Provided, That*
9 *this section shall not be applicable to contract awards for*
10 *which the lowest responsive and responsible bid of a United*
11 *States contractor exceeds the lowest responsive and respon-*
12 *sible bid of a foreign contractor by greater than 20 percent:*
13 *Provided further, That this section shall not apply to con-*
14 *tract awards for military construction on Kwajalein Atoll*
15 *for which the lowest responsive and responsible bid is sub-*
16 *mitted by a Marshallese contractor.*

17 *SEC. 113. The Secretary of Defense shall inform the*
18 *appropriate committees of both Houses of Congress, includ-*
19 *ing the Committees on Appropriations, of plans and scope*
20 *of any proposed military exercise involving United States*
21 *personnel 30 days prior to its occurring, if amounts ex-*
22 *pended for construction, either temporary or permanent,*
23 *are anticipated to exceed \$100,000.*

24 *SEC. 114. Not more than 20 percent of the funds made*
25 *available in this title which are limited for obligation dur-*

1 *ing the current fiscal year shall be obligated during the last*
2 *2 months of the fiscal year.*

3 *SEC. 115. Funds appropriated to the Department of*
4 *Defense for construction in prior years shall be available*
5 *for construction authorized for each such military depart-*
6 *ment by the authorizations enacted into law during the cur-*
7 *rent session of Congress.*

8 *SEC. 116. For military construction or family housing*
9 *projects that are being completed with funds otherwise ex-*
10 *pired or lapsed for obligation, expired or lapsed funds may*
11 *be used to pay the cost of associated supervision, inspection,*
12 *overhead, engineering and design on those projects and on*
13 *subsequent claims, if any.*

14 *SEC. 117. Notwithstanding any other provision of law,*
15 *any funds made available to a military department or de-*
16 *fense agency for the construction of military projects may*
17 *be obligated for a military construction project or contract,*
18 *or for any portion of such a project or contract, at any*
19 *time before the end of the fourth fiscal year after the fiscal*
20 *year for which funds for such project were made available,*
21 *if the funds obligated for such project: (1) are obligated from*
22 *funds available for military construction projects; and (2)*
23 *do not exceed the amount appropriated for such project,*
24 *plus any amount by which the cost of such project is in-*
25 *creased pursuant to law.*

1 (INCLUDING TRANSFER OF FUNDS)

2 SEC. 118. Subject to 30 days prior notification, or 14
3 days for a notification provided in an electronic medium
4 pursuant to sections 480 and 2883 of title 10, United States
5 Code, to the Committees on Appropriations of both Houses
6 of Congress, such additional amounts as may be determined
7 by the Secretary of Defense may be transferred to: (1) the
8 Department of Defense Family Housing Improvement Fund
9 from amounts appropriated for construction in “Family
10 Housing” accounts, to be merged with and to be available
11 for the same purposes and for the same period of time as
12 amounts appropriated directly to the Fund; or (2) the De-
13 partment of Defense Military Unaccompanied Housing Im-
14 provement Fund from amounts appropriated for construc-
15 tion of military unaccompanied housing in “Military Con-
16 struction” accounts, to be merged with and to be available
17 for the same purposes and for the same period of time as
18 amounts appropriated directly to the Fund: Provided, That
19 appropriations made available to the Funds shall be avail-
20 able to cover the costs, as defined in section 502(5) of the
21 Congressional Budget Act of 1974, of direct loans or loan
22 guarantees issued by the Department of Defense pursuant
23 to the provisions of subchapter IV of chapter 169 of title
24 10, United States Code, pertaining to alternative means of

1 *acquiring and improving military family housing, military*
 2 *unaccompanied housing, and supporting facilities.*

3 *(INCLUDING TRANSFER OF FUNDS)*

4 *SEC. 119. In addition to any other transfer authority*
 5 *available to the Department of Defense, amounts may be*
 6 *transferred from the accounts established by sections*
 7 *2906(a)(1) and 2906A(a)(1) of the Defense Base Closure*
 8 *and Realignment Act of 1990 (10 U.S.C. 2687 note), to the*
 9 *fund established by section 1013(d) of the Demonstration*
 10 *Cities and Metropolitan Development Act of 1966 (42*
 11 *U.S.C. 3374) to pay for expenses associated with the Home-*
 12 *owners Assistance Program incurred under 42 U.S.C.*
 13 *3374(a)(1)(A). Any amounts transferred shall be merged*
 14 *with and be available for the same purposes and for the*
 15 *same time period as the fund to which transferred.*

16 *SEC. 120. Notwithstanding any other provision of law,*
 17 *funds made available in this title for operation and mainte-*
 18 *nance of family housing shall be the exclusive source of*
 19 *funds for repair and maintenance of all family housing*
 20 *units, including general or flag officer quarters: Provided,*
 21 *That not more than \$35,000 per unit may be spent annu-*
 22 *ally for the maintenance and repair of any general or flag*
 23 *officer quarters without 30 days prior notification, or 14*
 24 *days for a notification provided in an electronic medium*
 25 *pursuant to sections 480 and 2883 of title 10, United States*

1 *Code, to the Committees on Appropriations of both Houses*
 2 *of Congress, except that an after-the-fact notification shall*
 3 *be submitted if the limitation is exceeded solely due to costs*
 4 *associated with environmental remediation that could not*
 5 *be reasonably anticipated at the time of the budget submis-*
 6 *sion: Provided further, That the Under Secretary of Defense*
 7 *(Comptroller) is to report annually to the Committees on*
 8 *Appropriations of both Houses of Congress all operation*
 9 *and maintenance expenditures for each individual general*
 10 *or flag officer quarters for the prior fiscal year.*

11 *SEC. 121. Amounts contained in the Ford Island Im-*
 12 *provement Account established by subsection (h) of section*
 13 *2814 of title 10, United States Code, are appropriated and*
 14 *shall be available until expended for the purposes specified*
 15 *in subsection (i)(1) of such section or until transferred pur-*
 16 *suant to subsection (i)(3) of such section.*

17 *(INCLUDING TRANSFER OF FUNDS)*

18 *SEC. 122. During the 5-year period after appropria-*
 19 *tions available in this Act to the Department of Defense*
 20 *for military construction and family housing operation and*
 21 *maintenance and construction have expired for obligation,*
 22 *upon a determination that such appropriations will not be*
 23 *necessary for the liquidation of obligations or for making*
 24 *authorized adjustments to such appropriations for obliga-*
 25 *tions incurred during the period of availability of such ap-*

1 *propriations, unobligated balances of such appropriations*
2 *may be transferred into the appropriation “Foreign Cur-*
3 *rency Fluctuations, Construction, Defense”, to be merged*
4 *with and to be available for the same time period and for*
5 *the same purposes as the appropriation to which trans-*
6 *ferred.*

7 *SEC. 123. Amounts appropriated or otherwise made*
8 *available in an account funded under the headings in this*
9 *title may be transferred among projects and activities with-*
10 *in the account in accordance with the reprogramming*
11 *guidelines for military construction and family housing*
12 *construction contained in Department of Defense Financial*
13 *Management Regulation 7000.14–R, Volume 3, Chapter 7,*
14 *of February 2009, as in effect on the date of enactment of*
15 *this Act.*

16 *SEC. 124. None of the funds made available in this*
17 *title may be obligated or expended for planning and design*
18 *and construction of projects at Arlington National Ceme-*
19 *tery.*

20 *SEC. 125. For an additional amount for “Military*
21 *Construction, Army”, \$34,500,000, to remain available*
22 *until September 30, 2020: Provided, That such funds may*
23 *only be obligated to carry out construction projects, in pri-*
24 *ority order, identified in the Department of the Army’s Un-*
25 *funded Priority List for Fiscal Year 2016 submitted to Con-*

1 *gress: Provided further, That such funding is subject to au-*
2 *thorization prior to obligation and expenditure of funds to*
3 *carry out construction: Provided further, That, not later*
4 *than 30 days after enactment of this Act, the Secretary of*
5 *the Army shall submit to the Committees on Appropriations*
6 *of both Houses of Congress an expenditure plan for funds*
7 *provided under this section.*

8 *SEC. 126. For an additional amount for “Military*
9 *Construction, Navy and Marine Corps”, \$34,320,000, to re-*
10 *main available until September 30, 2020: Provided, That*
11 *such funds may only be obligated to carry out construction*
12 *projects, in priority order, identified in the Department of*
13 *the Navy’s Unfunded Priority List for fiscal year 2016:*
14 *Provided further, That such funding is subject to authoriza-*
15 *tion prior to obligation and expenditure of funds to carry*
16 *out construction: Provided further, That, not later than 30*
17 *days after enactment of this Act, the Secretary of the Navy*
18 *shall submit to the Committees on Appropriations of both*
19 *Houses of Congress an expenditure plan for funds provided*
20 *under this section.*

21 *SEC. 127. For an additional amount for “Military*
22 *Construction, Army National Guard”, \$51,300,000, to re-*
23 *main available until September 30, 2020: Provided, That*
24 *such funds may only be obligated to carry out construction*
25 *projects, in priority order, identified in the Department of*

9 SEC. 128. For an additional amount for “Military
10 Construction, Army Reserve”, \$34,200,000, to remain
11 available until September 30, 2020: Provided, That such
12 funds may only be obligated to carry out construction
13 projects, in priority order, identified in the Department of
14 the Army’s Unfunded Priority List for Fiscal Year 2016
15 submitted to Congress: Provided further, That such funding
16 is subject to authorization prior to obligation and expendi-
17 ture of funds to carry out construction: Provided further,
18 That, not later than 30 days after enactment of this Act,
19 the Secretary of the Army shall submit to the Committees
20 on Appropriations of both Houses of Congress an expendi-
21 ture plan for funds provided under this section.

SEC. 129. Of the unobligated balances available from
prior Appropriations Acts (other than appropriations that
were designated by the Congress as an emergency require-

7 “*Military Construction, Army*”, \$85,000,000;
8 “*Military Construction, Air Force*”, \$86,400,000; and
9 “*Military Construction, Defense-Wide*”, \$133,000,000.

11 *SEC. 130. Of the unobligated balances made available*
12 *in prior appropriations Acts for the fund established in sec-*
13 *tion 1013(d) of the Demonstration Cities and Metropolitan*
14 *Development Act of 1966 (42 U.S.C. 3374), \$65,000,000 are*
15 *hereby rescinded.*

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1 *States; (2) provides to the Committees on Appropriations*
 2 *of both Houses of Congress (“the Committees”) a report de-*
 3 *tailing the findings of the cost analysis; and (3) certifies*
 4 *in writing to the Committees that the preferred site for the*
 5 *consolidation or relocation yields the greatest savings for*
 6 *the Air Force: Provided, That the term “United States” in*
 7 *this section does not include any territory or possession of*
 8 *the United States.*

9 *TITLE II*

10 *DEPARTMENT OF VETERANS AFFAIRS*

11 *VETERANS BENEFITS ADMINISTRATION*

12 *COMPENSATION AND PENSIONS*

13 *(INCLUDING TRANSFER OF FUNDS)*

14 *For the payment of compensation benefits to or on be-*
 15 *half of veterans and a pilot program for disability examina-*
 16 *tions as authorized by section 107 and chapters 11, 13, 18,*
 17 *51, 53, 55, and 61 of title 38, United States Code; pension*
 18 *benefits to or on behalf of veterans as authorized by chapters*
 19 *15, 51, 53, 55, and 61 of title 38, United States Code; and*
 20 *burial benefits, the Reinstated Entitlement Program for*
 21 *Survivors, emergency and other officers’ retirement pay, ad-*
 22 *justed-service credits and certificates, payment of premiums*
 23 *due on commercial life insurance policies guaranteed under*
 24 *the provisions of title IV of the Servicemembers Civil Relief*
 25 *Act (50 U.S.C. App. 541 et seq.) and for other benefits as*

1 *authorized by sections 107, 1312, 1977, and 2106, and*
 2 *chapters 23, 51, 53, 55, and 61 of title 38, United States*
 3 *Code, \$166,271,436,000, to remain available until ex-*
 4 *pended, of which \$87,146,761,000 shall become available on*
 5 *October 1, 2016: Provided, That not to exceed \$15,562,000*
 6 *of the amount appropriated for fiscal year 2016 and*
 7 *\$16,021,000 of the amount made available for fiscal year*
 8 *2017 under this heading shall be reimbursed to “General*
 9 *Operating Expenses, Veterans Benefits Administration”,*
 10 *and “Information Technology Systems” for necessary ex-*
 11 *penses in implementing the provisions of chapters 51, 53,*
 12 *and 55 of title 38, United States Code, the funding source*
 13 *for which is specifically provided as the “Compensation and*
 14 *Pensions” appropriation: Provided further, That such sums*
 15 *as may be earned on an actual qualifying patient basis,*
 16 *shall be reimbursed to “Medical Care Collections Fund” to*
 17 *augment the funding of individual medical facilities for*
 18 *nursing home care provided to pensioners as authorized.*

19 *READJUSTMENT BENEFITS*

20 *For the payment of readjustment and rehabilitation*
 21 *benefits to or on behalf of veterans as authorized by chapters*
 22 *21, 30, 31, 33, 34, 35, 36, 39, 41, 51, 53, 55, and 61 of*
 23 *title 38, United States Code, \$32,088,826,000, to remain*
 24 *available until expended, of which \$16,743,904,000 shall be-*
 25 *come available on October 1, 2016: Provided, That expenses*

1 *for rehabilitation program services and assistance which the*
 2 *Secretary is authorized to provide under subsection (a) of*
 3 *section 3104 of title 38, United States Code, other than*
 4 *under paragraphs (1), (2), (5), and (11) of that subsection,*
 5 *shall be charged to this account.*

6 *VETERANS INSURANCE AND INDEMNITIES*

7 *For military and naval insurance, national service life*
 8 *insurance, servicemen's indemnities, service-disabled vet-*
 9 *erans insurance, and veterans mortgage life insurance as*
 10 *authorized by chapters 19 and 21, title 38, United States*
 11 *Code, \$169,080,000, to remain available until expended, of*
 12 *which \$91,920,000 shall become available on October 1,*
 13 *2016.*

14 *VETERANS HOUSING BENEFIT PROGRAM FUND*

15 *For the cost of direct and guaranteed loans, such sums*
 16 *as may be necessary to carry out the program, as authorized*
 17 *by subchapters I through III of chapter 37 of title 38,*
 18 *United States Code: Provided, That such costs, including*
 19 *the cost of modifying such loans, shall be as defined in sec-*
 20 *tion 502 of the Congressional Budget Act of 1974: Provided*
 21 *further, That, during fiscal year 2016, within the resources*
 22 *available, not to exceed \$500,000 in gross obligations for*
 23 *direct loans are authorized for specially adapted housing*
 24 *loans.*

4 *For the cost of direct loans, \$31,000, as authorized by*
5 *chapter 31 of title 38, United States Code: Provided, That*
6 *such costs, including the cost of modifying such loans, shall*
7 *be as defined in section 502 of the Congressional Budget*
8 *Act of 1974: Provided further, That funds made available*
9 *under this heading are available to subsidize gross obliga-*
10 *tions for the principal amount of direct loans not to exceed*
11 *\$2,952,381.*

12 *In addition, for administrative expenses necessary to*
13 *carry out the direct loan program, \$367,000, which may*
14 *be paid to the appropriation for “General Operating Ex-*
15 *penses, Veterans Benefits Administration”.*

18 *For administrative expenses to carry out the direct*
19 *loan program authorized by subchapter V of chapter 37 of*
20 *title 38, United States Code, \$1,134,000.*

For necessary expenses for furnishing, as authorized
by law, inpatient and outpatient care and treatment to
beneficiaries of the Department of Veterans Affairs and vet-

1 *erans described in section 1705(a) of title 38, United States*
 2 *Code, including care and treatment in facilities not under*
 3 *the jurisdiction of the Department, and including medical*
 4 *supplies and equipment, bioengineering services, food serv-*
 5 *ices, and salaries and expenses of healthcare employees*
 6 *hired under title 38, United States Code, aid to State homes*
 7 *as authorized by section 1741 of title 38, United States*
 8 *Code, assistance and support services for caregivers as au-*
 9 *thorized by section 1720G of title 38, United States Code,*
 10 *loan repayments authorized by section 604 of the Caregivers*
 11 *and Veterans Omnibus Health Services Act of 2010 (Public*
 12 *Law 111–163; 124 Stat. 1174; 38 U.S.C. 7681 note), and*
 13 *hospital care and medical services authorized by section*
 14 *1787 of title 38, United States Code; \$1,134,197,000, which*
 15 *shall be in addition to funds previously appropriated under*
 16 *this heading that become available on October 1, 2015; and,*
 17 *in addition, \$51,673,000,000, plus reimbursements, shall*
 18 *become available on October 1, 2016, and shall remain*
 19 *available until September 30, 2017: Provided, That, of the*
 20 *amount made available on October 1, 2016, under this*
 21 *heading, \$1,400,000,000 shall remain available until Sep-*
 22 *tember 30, 2018: Provided further, That, notwithstanding*
 23 *any other provision of law, the Secretary of Veterans Affairs*
 24 *shall establish a priority for the provision of medical treat-*
 25 *ment for veterans who have service-connected disabilities,*

1 lower income, or have special needs: Provided further, That,
 2 notwithstanding any other provision of law, the Secretary
 3 of Veterans Affairs shall give priority funding for the provi-
 4 sion of basic medical benefits to veterans in enrollment pri-
 5 ority groups 1 through 6: Provided further, That, notwith-
 6 standing any other provision of law, the Secretary of Vet-
 7 erans Affairs may authorize the dispensing of prescription
 8 drugs from Veterans Health Administration facilities to en-
 9 rolled veterans with privately written prescriptions based
 10 on requirements established by the Secretary: Provided fur-
 11 ther, That the implementation of the program described in
 12 the previous proviso shall incur no additional cost to the
 13 Department of Veterans Affairs: Provided further, That, of
 14 the amount made available on October 1, 2016, under this
 15 heading, not less than \$900,000,000 shall be available for
 16 highly effective Hepatitis C Virus (HCV) clinical treat-
 17 ments including clinical treatments with modern medica-
 18 tions that have significantly higher cure rates than older
 19 medications, are easier to prescribe, and have fewer and
 20 milder side effects.

21 MEDICAL SUPPORT AND COMPLIANCE

22 For necessary expenses in the administration of the
 23 medical, hospital, nursing home, domiciliary, construction,
 24 supply, and research activities, as authorized by law; ad-
 25 ministrative expenses in support of capital policy activities;

1 *and administrative and legal expenses of the Department*
 2 *for collecting and recovering amounts owed the Department*
 3 *as authorized under chapter 17 of title 38, United States*
 4 *Code, and the Federal Medical Care Recovery Act (42*
 5 *U.S.C. 2651 et seq.), \$6,524,000,000, plus reimbursements,*
 6 *shall become available on October 1, 2016, and shall remain*
 7 *available until September 30, 2017: Provided, That, of the*
 8 *amount made available on October 1, 2016, under this*
 9 *heading, \$100,000,000 shall remain available until Sep-*
 10 *tember 30, 2018.*

11 *MEDICAL FACILITIES*

12 *For necessary expenses for the maintenance and oper-*
 13 *ation of hospitals, nursing homes, domiciliary facilities,*
 14 *and other necessary facilities of the Veterans Health Admin-*
 15 *istration; for administrative expenses in support of plan-*
 16 *ning, design, project management, real property acquisition*
 17 *and disposition, construction, and renovation of any facil-*
 18 *ity under the jurisdiction or for the use of the Department;*
 19 *for oversight, engineering, and architectural activities not*
 20 *charged to project costs; for repairing, altering, improving,*
 21 *or providing facilities in the several hospitals and homes*
 22 *under the jurisdiction of the Department, not otherwise pro-*
 23 *vided for, either by contract or by the hire of temporary*
 24 *employees and purchase of materials; for leases of facilities;*
 25 *and for laundry services, \$5,074,000,000, plus reimburse-*

1 ments, shall become available on October 1, 2016, and shall
2 remain available until September 30, 2017: Provided, That,
3 of the amount made available on October 1, 2016, under
4 this heading, \$250,000,000 shall remain available until
5 September 30, 2018.

6 MEDICAL AND PROSTHETIC RESEARCH

7 For necessary expenses in carrying out programs of
8 medical and prosthetic research and development as author-
9 ized by chapter 73 of title 38, United States Code,
10 \$621,813,000, plus reimbursements, shall remain available
11 until September 30, 2017.

12 NATIONAL CEMETERY ADMINISTRATION

13 For necessary expenses of the National Cemetery Ad-
14 ministration for operations and maintenance, not otherwise
15 provided for, including uniforms or allowances therefor;
16 cemeterial expenses as authorized by law; purchase of one
17 passenger motor vehicle for use in cemeterial operations;
18 hire of passenger motor vehicles; and repair, alteration or
19 improvement of facilities under the jurisdiction of the Na-
20 tional Cemetery Administration, \$266,220,000, of which
21 not to exceed \$26,600,000 shall remain available until Sep-
22 tember 30, 2017.

1 *DEPARTMENTAL ADMINISTRATION*2 *GENERAL ADMINISTRATION*3 *(INCLUDING TRANSFER OF FUNDS)*

4 *For necessary operating expenses of the Department of*
5 *Veterans Affairs, not otherwise provided for, including ad-*
6 *ministrative expenses in support of Department-Wide cap-*
7 *ital planning, management and policy activities, uniforms,*
8 *or allowances therefor; not to exceed \$25,000 for official re-*
9 *ception and representation expenses; hire of passenger*
10 *motor vehicles; and reimbursement of the General Services*
11 *Administration for security guard services, \$311,591,000,*
12 *of which not to exceed \$10,000,000 shall remain available*
13 *until September 30, 2017: Provided, That funds provided*
14 *under this heading may be transferred to “General Oper-*
15 *ating Expenses, Veterans Benefits Administration”.*

16 *BOARD OF VETERANS APPEALS*

17 *For necessary operating expenses of the Board of Vet-*
18 *erans Appeals, \$107,884,000, of which not to exceed*
19 *\$10,788,000 shall remain available until September 30,*
20 *2017.*

21 *GENERAL OPERATING EXPENSES, VETERANS BENEFITS*22 *ADMINISTRATION*

23 *For necessary operating expenses of the Veterans Bene-*
24 *fits Administration, not otherwise provided for, including*
25 *hire of passenger motor vehicles, reimbursement of the Gen-*

1 eral Services Administration for security guard services,
 2 and reimbursement of the Department of Defense for the
 3 cost of overseas employee mail, \$2,697,734,000: Provided,
 4 That expenses for services and assistance authorized under
 5 paragraphs (1), (2), (5), and (11) of section 3104(a) of title
 6 38, United States Code, that the Secretary of Veterans Af-
 7 fairs determines are necessary to enable entitled veterans:
 8 (1) to the maximum extent feasible, to become employable
 9 and to obtain and maintain suitable employment; or (2)
 10 to achieve maximum independence in daily living, shall be
 11 charged to this account: Provided further, That, of the funds
 12 made available under this heading, not to exceed
 13 \$160,000,000 shall remain available until September 30,
 14 2017.

15 INFORMATION TECHNOLOGY SYSTEMS

16 For necessary expenses for information technology sys-
 17 tems and telecommunications support, including develop-
 18 mental information systems and operational information
 19 systems; for pay and associated costs; and for the capital
 20 asset acquisition of information technology systems, includ-
 21 ing management and related contractual costs of said ac-
 22 quisitions, including contractual costs associated with oper-
 23 ations authorized by section 3109 of title 5, United States
 24 Code, \$4,106,363,000, plus reimbursements: Provided, That
 25 \$1,115,757,000 shall be for pay and associated costs, of

1 *which not to exceed \$34,800,000 shall remain available*
2 *until September 30, 2017: Provided further, That*
3 *\$2,512,863,000 shall be for operations and maintenance, of*
4 *which not to exceed \$175,000,000 shall remain available*
5 *until September 30, 2017: Provided further, That*
6 *\$477,743,000 shall be for information technology systems*
7 *development, modernization, and enhancement, and shall*
8 *remain available until September 30, 2017: Provided fur-*
9 *ther, That amounts made available for information tech-*
10 *nology systems development, modernization, and enhance-*
11 *ment may not be obligated or expended until the Secretary*
12 *of Veterans Affairs or the Chief Information Officer of the*
13 *Department of Veterans Affairs submits to the Committees*
14 *on Appropriations of both Houses of Congress a certifi-*
15 *cation of the amounts, in parts or in full, to be obligated*
16 *and expended for each development project: Provided fur-*
17 *ther, That amounts made available for salaries and ex-*
18 *penses, operations and maintenance, and information tech-*
19 *nology systems development, modernization, and enhance-*
20 *ment may be transferred among the three subaccounts after*
21 *the Secretary of Veterans Affairs requests from the Commit-*
22 *tees on Appropriations of both Houses of Congress the au-*
23 *thority to make the transfer and an approval is issued: Pro-*
24 *vided further, That amounts made available for the “Infor-*
25 *mation Technology Systems” account for development, mod-*

1 ernization, and enhancement may be transferred among
2 projects or to newly defined projects: Provided further, That
3 no project may be increased or decreased by more than
4 \$1,000,000 of cost prior to submitting a request to the Com-
5 mittees on Appropriations of both Houses of Congress to
6 make the transfer and an approval is issued, or absent a
7 response, a period of 30 days has elapsed: Provided further,
8 That funds under this heading may be used by the Inter-
9 agency Program Office through the Department of Veterans
10 Affairs to develop a standard data reference terminology
11 model: Provided further, That, of the funds made available
12 for information technology systems development, mod-
13 ernization, and enhancement for VistA Evolution, not more
14 than 25 percent may be obligated or expended until the Sec-
15 retary of Veterans Affairs submits to the Committees on Ap-
16 propriations of both Houses of Congress, and such Commit-
17 tees approve, a report that describes: (1) the status of and
18 changes to the VistA Evolution program plan dated March
19 24, 2014 (hereinafter referred to as the “Plan”), the VistA
20 4 product roadmap dated February 26, 2015 (“Roadmap”),
21 and the VistA 4 Incremental Life Cycle Cost Estimate,
22 dated October 26, 2014; (2) any changes to the scope or
23 functionality of projects within the VistA Evolution pro-
24 gram as established in the Plan; (3) actual program costs
25 incurred to date; (4) progress in meeting the schedule mile-

1 stones that have been established in the Plan; (5) a Project
2 Management Accountability System (PMAS) Dashboard
3 Progress report that identifies each VistA Evolution project
4 being tracked through PMAS, what functionality it is in-
5 tended to provide, and what evaluation scores it has re-
6 ceived throughout development; (6) the definition being used
7 for interoperability between the electronic health record sys-
8 tems of the Department of Defense and the Department of
9 Veterans Affairs, the metrics to measure the extent of inter-
10 operability, the milestones and timeline associated with
11 achieving interoperability, and the baseline measurements
12 associated with interoperability; (7) progress toward devel-
13 oping and implementing all components and levels of inter-
14 operability, including semantic interoperability; (8) the
15 change management tools in place to facilitate the imple-
16 mentation of VistA Evolution and interoperability; and (9)
17 any changes to the governance structure for the VistA Evo-
18 lution program and its chain of decisionmaking authority:
19 Provided further, That the funds made available under this
20 heading for information technology systems development,
21 modernization, and enhancement, shall be for the projects,
22 and in the amounts, specified under this heading in the
23 report accompanying this Act.

1 OFFICE OF INSPECTOR GENERAL

2 *For necessary expenses of the Office of Inspector Gen-*
3 *eral, to include information technology, in carrying out the*
4 *provisions of the Inspector General Act of 1978 (5 U.S.C.*
5 *App.), \$126,766,000, of which \$12,676,000 shall remain*
6 *available until September 30, 2017.*

7 CONSTRUCTION, MAJOR PROJECTS

8 *For constructing, altering, extending, and improving*
9 *any of the facilities, including parking projects, under the*
10 *jurisdiction or for the use of the Department of Veterans*
11 *Affairs, or for any of the purposes set forth in sections 316,*
12 *2404, 2406 and chapter 81 of title 38, United States Code,*
13 *not otherwise provided for, including planning, architec-*
14 *tural and engineering services, construction management*
15 *services, maintenance or guarantee period services costs as-*
16 *sociated with equipment guarantees provided under the*
17 *project, services of claims analysts, offsite utility and storm*
18 *drainage system construction costs, and site acquisition,*
19 *where the estimated cost of a project is more than the*
20 *amount set forth in section 8104(a)(3)(A) of title 38, United*
21 *States Code, or where funds for a project were made avail-*
22 *able in a previous major project appropriation,*
23 *\$1,027,064,000, of which \$967,064,000 shall remain avail-*
24 *able until September 30, 2020, and of which \$60,000,000*
25 *shall remain available until expended: Provided, That ex-*

1 *cept for advance planning activities, including needs assess-*
2 *ments which may or may not lead to capital investments,*
3 *and other capital asset management related activities, in-*
4 *cluding portfolio development and management activities,*
5 *and investment strategy studies funded through the advance*
6 *planning fund and the planning and design activities fund-*
7 *ed through the design fund, including needs assessments*
8 *which may or may not lead to capital investments, and*
9 *salaries and associated costs of the resident engineers who*
10 *oversee those capital investments funded through this ac-*
11 *count, and funds provided for the purchase of land for the*
12 *National Cemetery Administration through the land acqui-*
13 *sition line item, none of the funds made available under*
14 *this heading shall be used for any project which has not*
15 *been approved by the Congress in the budgetary process:*
16 *Provided further, That funds made available under this*
17 *heading for fiscal year 2016, for each approved project shall*
18 *be obligated: (1) by the awarding of a construction docu-*
19 *ments contract by September 30, 2016; and (2) by the*
20 *awarding of a construction contract by September 30, 2017:*
21 *Provided further, That the Secretary of Veterans Affairs*
22 *shall promptly submit to the Committees on Appropriations*
23 *of both Houses of Congress a written report on any ap-*
24 *proved major construction project for which obligations are*
25 *not incurred within the time limitations established above:*

1 *Provided further, That, of the amount made available on*
2 *October 1, 2016, under this heading, \$490,700,000 for Vet-*
3 *erans Health Administration major construction projects*
4 *shall not be available until the Secretary of Veterans Af-*
5 *fairs:*

6 (1) *Enters into an agreement with the U.S.*
7 *Army Corps of Engineers, to serve as the design and*
8 *construction agent for Veterans Health Administra-*
9 *tion projects with a Total Estimated Cost of*
10 *\$250,000,000 or above.*

11 (2) *That such an agreement will designate the*
12 *U.S. Army Corps of Engineers as the design and con-*
13 *struction agent to serve as—*

14 (A) *the overall construction project man-*
15 *ager, with a dedicated project delivery team in-*
16 *cluding engineers, medical facility designers, and*
17 *professional project managers;*

18 (B) *the facility design manager, with a*
19 *dedicated design manager and technical support;*

20 (C) *the design agent, with standardized and*
21 *rigorous facility designs;*

22 (D) *the architect/engineer designer; and*

23 (E) *the overall construction agent, with a*
24 *dedicated construction and technical team dur-*

10 *CONSTRUCTION, MINOR PROJECTS*

11 *For constructing, altering, extending, and improving*
12 *any of the facilities, including parking projects, under the*
13 *jurisdiction or for the use of the Department of Veterans*
14 *Affairs, including planning and assessments of needs which*
15 *may lead to capital investments, architectural and engi-*
16 *neering services, maintenance or guarantee period services*
17 *costs associated with equipment guarantees provided under*
18 *the project, services of claims analysts, offsite utility and*
19 *storm drainage system construction costs, and site acquisi-*
20 *tion, or for any of the purposes set forth in sections 316,*
21 *2404, 2406 and chapter 81 of title 38, United States Code,*
22 *not otherwise provided for, where the estimated cost of a*
23 *project is equal to or less than the amount set forth in sec-*
24 *tion 8104(a)(3)(A) of title 38, United States Code,*
25 *\$378,080,000, to remain available until September 30,*

1 2020, along with unobligated balances of previous “Con-
 2 struction, Minor Projects” appropriations which are hereby
 3 made available for any project where the estimated cost is
 4 equal to or less than the amount set forth in such section:
 5 Provided, That funds made available under this heading
 6 shall be for: (1) repairs to any of the nonmedical facilities
 7 under the jurisdiction or for the use of the Department
 8 which are necessary because of loss or damage caused by
 9 any natural disaster or catastrophe; and (2) temporary
 10 measures necessary to prevent or to minimize further loss
 11 by such causes.

12 GRANTS FOR CONSTRUCTION OF STATE EXTENDED CARE
 13 FACILITIES

14 For grants to assist States to acquire or construct
 15 State nursing home and domiciliary facilities and to re-
 16 model, modify, or alter existing hospital, nursing home, and
 17 domiciliary facilities in State homes, for furnishing care
 18 to veterans as authorized by sections 8131 through 8137 of
 19 title 38, United States Code, \$100,000,000, to remain avail-
 20 able until expended.

21 GRANTS FOR CONSTRUCTION OF VETERANS CEMETERIES

22 For grants to assist States and tribal organizations
 23 in establishing, expanding, or improving veterans ceme-
 24 teries as authorized by section 2408 of title 38, United

1 *States Code, \$46,000,000, to remain available until ex-*
2 *pended.*

3 *ADMINISTRATIVE PROVISIONS*

4 *(INCLUDING TRANSFER OF FUNDS)*

5 *SEC. 201. Any appropriation for fiscal year 2016 for*
6 *“Compensation and Pensions”, “Readjustment Benefits”,*
7 *and “Veterans Insurance and Indemnities” may be trans-*
8 *ferred as necessary to any other of the mentioned appro-*
9 *priations: Provided, That, before a transfer may take place,*
10 *the Secretary of Veterans Affairs shall request from the*
11 *Committees on Appropriations of both Houses of Congress*
12 *the authority to make the transfer and such Committees*
13 *issue an approval, or absent a response, a period of 30 days*
14 *has elapsed.*

15 *(INCLUDING TRANSFER OF FUNDS)*

16 *SEC. 202. Amounts made available for the Department*
17 *of Veterans Affairs for fiscal year 2016, in this Act or any*
18 *other Act, under the “Medical Services”, “Medical support*
19 *and compliance”, and “Medical Facilities” accounts may*
20 *be transferred among the accounts: Provided, That any*
21 *transfers between the “Medical Services” and “Medical*
22 *Support and Compliance” accounts of 1 percent or less of*
23 *the total amount appropriated to the account in this or any*
24 *other Act may take place subject to notification from the*
25 *Secretary of Veterans Affairs to the Committees on Appro-*

1 priations of both Houses of Congress of the amount and
 2 purpose of the transfer: Provided further, That any trans-
 3 fers between the “Medical Services” and “Medical Support
 4 and Compliance” accounts in excess of 1 percent, or exceed-
 5 ing the cumulative 1 percent for the fiscal year, may take
 6 place only after the Secretary requests from the Committees
 7 on Appropriations of both Houses of Congress the authority
 8 to make the transfer and an approval is issued: Provided
 9 further, That any transfers to or from the “Medical Facili-
 10 ties” account may take place only after the Secretary re-
 11 quests from the Committees on Appropriations of both
 12 Houses of Congress the authority to make the transfer and
 13 an approval is issued.

14 SEC. 203. Appropriations available in this title for sal-
 15 aries and expenses shall be available for services authorized
 16 by section 3109 of title 5, United States Code; hire of pas-
 17 senger motor vehicles; lease of a facility or land or both;
 18 and uniforms or allowances therefore, as authorized by sec-
 19 tions 5901 through 5902 of title 5, United States Code.

20 SEC. 204. No appropriations in this title (except the
 21 appropriations for “Construction, Major Projects”, and
 22 “Construction, Minor Projects”) shall be available for the
 23 purchase of any site for or toward the construction of any
 24 new hospital or home.

1 *SEC. 205. No appropriations in this title shall be*
2 *available for hospitalization or examination of any persons*
3 *(except beneficiaries entitled to such hospitalization or ex-*
4 *amination under the laws providing such benefits to vet-*
5 *erans, and persons receiving such treatment under sections*
6 *7901 through 7904 of title 5, United States Code, or the*
7 *Robert T. Stafford Disaster Relief and Emergency Assist-*
8 *ance Act (42 U.S.C. 5121 et seq.)), unless reimbursement*
9 *of the cost of such hospitalization or examination is made*
10 *to the “Medical Services” account at such rates as may be*
11 *fixed by the Secretary of Veterans Affairs.*

12 *SEC. 206. Appropriations available in this title for*
13 *“Compensation and pensions”, “Readjustment benefits”,*
14 *and “Veterans insurance and indemnities” shall be avail-*
15 *able for payment of prior year accrued obligations required*
16 *to be recorded by law against the corresponding prior year*
17 *accounts within the last quarter of fiscal year 2015.*

18 *SEC. 207. Appropriations available in this title shall*
19 *be available to pay prior year obligations of corresponding*
20 *prior year appropriations accounts resulting from sections*
21 *3328(a), 3334, and 3712(a) of title 31, United States Code,*
22 *except that if such obligations are from trust fund accounts*
23 *they shall be payable only from “Compensation and Pen-*
24 *sions”.*

1 (INCLUDING TRANSFER OF FUNDS)

2 *SEC. 208. Notwithstanding any other provision of law,*
3 *during fiscal year 2016, the Secretary of Veterans Affairs*
4 *shall, from the National Service Life Insurance Fund under*
5 *section 1920 of title 38, United States Code, the Veterans’*
6 *Special Life Insurance Fund under section 1923 of title 38,*
7 *United States Code, and the United States Government Life*
8 *Insurance Fund under section 1955 of title 38, United*
9 *States Code, reimburse the “General operating expenses,*
10 *Veterans Benefits Administration” and “Information Tech-*
11 *nology Systems” accounts for the cost of administration of*
12 *the insurance programs financed through those accounts:*
13 *Provided, That reimbursement shall be made only from the*
14 *surplus earnings accumulated in such an insurance pro-*
15 *gram during fiscal year 2016 that are available for divi-*
16 *dends in that program after claims have been paid and ac-*
17 *tuarily determined reserves have been set aside: Provided*
18 *further, That, if the cost of administration of such an insur-*
19 *ance program exceeds the amount of surplus earnings accu-*
20 *mulated in that program, reimbursement shall be made*
21 *only to the extent of such surplus earnings: Provided fur-*
22 *ther, That the Secretary shall determine the cost of adminis-*
23 *tration for fiscal year 2016 which is properly allocable to*
24 *the provision of each such insurance program and to the*

1 *provision of any total disability income insurance included*
2 *in that insurance program.*

3 *SEC. 209. Amounts deducted from enhanced-use lease*
4 *proceeds to reimburse an account for expenses incurred by*
5 *that account during a prior fiscal year for providing en-*
6 *hanced-use lease services, may be obligated during the fiscal*
7 *year in which the proceeds are received.*

8 *(INCLUDING TRANSFER OF FUNDS)*

9 *SEC. 210. Funds available in this title or funds for*
10 *salaries and other administrative expenses shall also be*
11 *available to reimburse the Office of Resolution Management*
12 *of the Department of Veterans Affairs and the Office of Em-*
13 *ployment Discrimination Complaint Adjudication under*
14 *section 319 of title 38, United States Code, for all services*
15 *provided at rates which will recover actual costs but not*
16 *to exceed \$43,700,000 for the Office of Resolution Manage-*
17 *ment and \$3,400,000 for the Office of Employment Dis-*
18 *crimination Complaint Adjudication: Provided, That pay-*
19 *ments may be made in advance for services to be furnished*
20 *based on estimated costs: Provided further, That amounts*
21 *received shall be credited to the “General Administration”*
22 *and “Information Technology Systems” accounts for use by*
23 *the office that provided the service.*

(TRANSFER OF FUNDS)

1

2 *SEC. 211. Of the amounts made available to the De-*
3 *partment of Veterans Affairs for fiscal year 2016 for the*
4 *Office of Rural Health under the heading “Medical Serv-*
5 *ices”, including any advance appropriation for fiscal year*
6 *2016 provided in prior appropriation Acts, up to*
7 *\$20,000,000 may be transferred to and merged with funds*
8 *appropriated under the heading “Grants for Construction*
9 *of State Extended Care Facilities”.*

10

SEC. 212. No funds of the Department of Veterans Af-
11 *fairs shall be available for hospital care, nursing home care,*
12 *or medical services provided to any person under chapter*
13 *17 of title 38, United States Code, for a non-service-con-*
14 *nected disability described in section 1729(a)(2) of such*
15 *title, unless that person has disclosed to the Secretary of*
16 *Veterans Affairs, in such form as the Secretary may require,*
17 *current, accurate third-party reimbursement information*
18 *for purposes of section 1729 of such title: Provided, That*
19 *the Secretary may recover, in the same manner as any other*
20 *debt due the United States, the reasonable charges for such*
21 *care or services from any person who does not make such*
22 *disclosure as required: Provided further, That any amounts*
23 *so recovered for care or services provided in a prior fiscal*
24 *year may be obligated by the Secretary during the fiscal*
25 *year in which amounts are received.*

1 (INCLUDING TRANSFER OF FUNDS)

2 SEC. 213. Notwithstanding any other provision of law,
3 proceeds or revenues derived from enhanced-use leasing ac-
4 tivities (including disposal) may be deposited into the
5 “Construction, Major Projects” and “Construction, Minor
6 Projects” accounts and be used for construction (including
7 site acquisition and disposition), alterations, and improve-
8 ments of any medical facility under the jurisdiction or for
9 the use of the Department of Veterans Affairs. Such sums
10 as realized are in addition to the amount provided for in
11 “Construction, Major Projects” and “Construction, Minor
12 Projects”.

13 SEC. 214. Amounts made available under “Medical
14 Services” are available—

15 (1) for furnishing recreational facilities, sup-
16 plies, and equipment; and

17 (2) for funeral expenses, burial expenses, and
18 other expenses incidental to funerals and burials for
19 beneficiaries receiving care in the Department.

20 (INCLUDING TRANSFER OF FUNDS)

21 SEC. 215. Such sums as may be deposited to the Med-
22 ical Care Collections Fund pursuant to section 1729A of
23 title 38, United States Code, may be transferred to “Medical
24 Services”, to remain available until expended for the pur-
25 poses of that account: Provided, That, for fiscal year 2016,

1 up to \$27,000,000 deposited in the Department of Veterans
2 Affairs Medical Care Collections Fund shall be transferred
3 to “Information Technology Systems”, to remain available
4 until expended, for development of the Medical Care Collec-
5 tions Fund electronic data exchange provider and payer
6 system.

7 SEC. 216. The Secretary of Veterans Affairs may enter
8 into agreements with Indian tribes and tribal organizations
9 which are party to the Alaska Native Health Compact with
10 the Indian Health Service, and Indian tribes and tribal
11 organizations serving rural Alaska which have entered into
12 contracts with the Indian Health Service under the Indian
13 Self Determination and Educational Assistance Act, to pro-
14 vide healthcare, including behavioral health and dental
15 care. The Secretary shall require participating veterans and
16 facilities to comply with all appropriate rules and regula-
17 tions, as established by the Secretary. The term “rural Alas-
18 ka” shall mean those lands sited within the external bound-
19 aries of the Alaska Native regions specified in sections
20 7(a)(1)–(4) and (7)–(12) of the Alaska Native Claims Set-
21 tlement Act, as amended (43 U.S.C. 1606), and those lands
22 within the Alaska Native regions specified in sections
23 7(a)(5) and 7(a)(6) of the Alaska Native Claims Settlement
24 Act, as amended (43 U.S.C. 1606), which are not within
25 the boundaries of the municipality of Anchorage, the Fair-

1 *banks North Star Borough, the Kenai Peninsula Borough*
2 *or the Matanuska Susitna Borough.*

3 *(INCLUDING TRANSFER OF FUNDS)*

4 *SEC. 217. Such sums as may be deposited to the De-*
5 *partment of Veterans Affairs Capital Asset Fund pursuant*
6 *to section 8118 of title 38, United States Code, may be*
7 *transferred to the “Construction, Major Projects” and “Con-*
8 *struction, Minor Projects” accounts, to remain available*
9 *until expended for the purposes of these accounts.*

10 *SEC. 218. None of the funds made available in this*
11 *title may be used to implement any policy prohibiting the*
12 *Directors of the Veterans Integrated Services Networks from*
13 *conducting outreach or marketing to enroll new veterans*
14 *within their respective Networks.*

15 *SEC. 219. The Secretary of Veterans Affairs shall sub-*
16 *mit to the Committees on Appropriations of both Houses*
17 *of Congress a quarterly report on the financial status of*
18 *the Veterans Health Administration.*

19 *(INCLUDING TRANSFER OF FUNDS)*

20 *SEC. 220. Amounts made available under the “Medical*
21 *Services”, “Medical Support and Compliance”, “Medical*
22 *Facilities”, “General Operating Expenses, Veterans Bene-*
23 *fits Administration”, “General Administration”, and “Na-*
24 *tional Cemetery Administration” accounts for fiscal year*
25 *2016 may be transferred to or from the “Information Tech-*

1 *nology Systems” account: Provided, That, before a transfer*
 2 *may take place, the Secretary of Veterans Affairs shall re-*
 3 *quest from the Committees on Appropriations of both*
 4 *Houses of Congress the authority to make the transfer and*
 5 *an approval is issued.*

6 *SEC. 221. None of the funds appropriated or otherwise*
 7 *made available by this Act or any other Act for the Depart-*
 8 *ment of Veterans Affairs may be used in a manner that*
 9 *is inconsistent with: (1) section 842 of the Transportation,*
 10 *Treasury, Housing and Urban Development, the Judiciary,*
 11 *the District of Columbia, and Independent Agencies Appro-*
 12 *priations Act, 2006 (Public Law 109–115; 119 Stat. 2506);*
 13 *or (2) section 8110(a)(5) of title 38, United States Code.*

14 *SEC. 222. Of the amounts made available to the De-*
 15 *partment of Veterans Affairs for fiscal year 2016, in this*
 16 *Act or any other Act, under the “Medical Facilities” ac-*
 17 *count for nonrecurring maintenance, not more than 20 per-*
 18 *cent of the funds made available shall be obligated during*
 19 *the last 2 months of that fiscal year: Provided, That the*
 20 *Secretary may waive this requirement after providing writ-*
 21 *ten notice to the Committees on Appropriations of both*
 22 *Houses of Congress.*

23 *(INCLUDING TRANSFER OF FUNDS)*

24 *SEC. 223. Of the amounts appropriated to the Depart-*
 25 *ment of Veterans Affairs for fiscal year 2016 for “Medical*

1 *Services*”, “*Medical Support and Compliance*”, “*Medical*
2 *Facilities*”, “*Construction, Minor Projects*”, and “*Informa-*
3 *tion Technology Systems*”, up to \$266,303,000, plus reim-
4 *bursements, may be transferred to the Joint Department of*
5 *Defense-Department of Veterans Affairs Medical Facility*
6 *Demonstration Fund, established by section 1704 of the Na-*
7 *tional Defense Authorization Act for Fiscal Year 2010 (Pub-*
8 *lic Law 111–84; 123 Stat. 3571) and may be used for oper-*
9 *ation of the facilities designated as combined Federal med-*
10 *ical facilities as described by section 706 of the Duncan*
11 *Hunter National Defense Authorization Act for Fiscal Year*
12 *2009 (Public Law 110–417; 122 Stat. 4500): Provided,*
13 *That additional funds may be transferred from accounts*
14 *designated in this section to the Joint Department of De-*
15 *fense-Department of Veterans Affairs Medical Facility*
16 *Demonstration Fund upon written notification by the Sec-*
17 *retary of Veterans Affairs to the Committees on Appropria-*
18 *tions of both Houses of Congress: Provided further, That sec-*
19 *tion 223 of Title II of Division I of Public Law 113–235*
20 *is repealed.*

21 (INCLUDING TRANSFER OF FUNDS)

22 SEC. 224. *Of the amounts appropriated to the Depart-*
23 *ment of Veterans Affairs which become available on October*
24 *1, 2016, for “Medical Services”, “Medical Support and*
25 *Compliance”, and “Medical Facilities”, up to*

1 \$265,675,000, plus reimbursements, may be transferred to
 2 the Joint Department of Defense-Department of Veterans
 3 Affairs Medical Facility Demonstration Fund, established
 4 by section 1704 of the National Defense Authorization Act
 5 for Fiscal Year 2010 (Public Law 111–84; 123 Stat. 3571)
 6 and may be used for operation of the facilities designated
 7 as combined Federal medical facilities as described by sec-
 8 tion 706 of the Duncan Hunter National Defense Author-
 9 ization Act for Fiscal Year 2009 (Public Law 110–417; 122
 10 Stat. 4500): Provided, That additional funds may be trans-
 11 ferred from accounts designated in this section to the Joint
 12 Department of Defense-Department of Veterans Affairs
 13 Medical Facility Demonstration Fund upon written notifi-
 14 cation by the Secretary of Veterans Affairs to the Commit-
 15 tees on Appropriations of both Houses of Congress.

16 (INCLUDING TRANSFER OF FUNDS)

17 SEC. 225. Such sums as may be deposited to the Med-
 18 ical Care Collections Fund pursuant to section 1729A of
 19 title 38, United States Code, for healthcare provided at fa-
 20 cilities designated as combined Federal medical facilities as
 21 described by section 706 of the Duncan Hunter National
 22 Defense Authorization Act for Fiscal Year 2009 (Public
 23 Law 110–417; 122 Stat. 4500) shall also be available: (1)
 24 for transfer to the Joint Department of Defense-Department
 25 of Veterans Affairs Medical Facility Demonstration Fund,

1 *established by section 1704 of the National Defense Author-*
 2 *ization Act for Fiscal Year 2010 (Public Law 111–84; 123*
 3 *Stat. 3571); and (2) for operations of the facilities des-*
 4 *ignated as combined Federal medical facilities as described*
 5 *by section 706 of the Duncan Hunter National Defense Au-*
 6 *thorization Act for Fiscal Year 2009 (Public Law 110–417;*
 7 *122 Stat. 4500).*

8 (TRANSFER OF FUNDS)

9 SEC. 226. *Of the amounts available in this title for*
 10 *“Medical Services”, “Medical Support and Compliance”,*
 11 *and “Medical Facilities”, a minimum of \$15,000,000 shall*
 12 *be transferred to the DOD–VA Health Care Sharing Incen-*
 13 *tive Fund, as authorized by section 8111(d) of title 38,*
 14 *United States Code, to remain available until expended, for*
 15 *any purpose authorized by section 8111 of title 38, United*
 16 *States Code.*

17 (INCLUDING RESCISSIONS OF FUNDS)

18 SEC. 227. (a) *Of the funds appropriated in division*
 19 *I of Public Law 113–235, the following amounts which be-*
 20 *come available on October 1, 2015, are hereby rescinded*
 21 *from the following accounts in the amounts specified:*

22 (1) *“Department of Veterans Affairs, Medical*
 23 *Services”, \$1,400,000,000.*

24 (2) *“Department of Veterans Affairs, Medical*
 25 *Support and Compliance”, \$150,000,000.*

1 (3) “*Department of Veterans Affairs, Medical*
2 *Facilities*”, \$250,000,000.

3 (b) *In addition to amounts provided elsewhere in this*
4 *Act, an additional amount is appropriated to the following*
5 *accounts in the amounts specified to remain available until*
6 *September 30, 2017:*

7 (1) “*Department of Veterans Affairs, Medical*
8 *Services*”, \$1,400,000,000.

9 (2) “*Department of Veterans Affairs, Medical*
10 *Support and Compliance*”, \$100,000,000.

11 (3) “*Department of Veterans Affairs, Medical*
12 *Facilities*”, \$250,000,000.

13 *SEC. 228. The Secretary of the Department of Veterans*
14 *Affairs shall notify the Committees on Appropriations of*
15 *both Houses of Congress of all bid savings in major con-*
16 *struction projects that total at least \$5,000,000, or 5 percent*
17 *of the programmed amount of the project, whichever is less:*
18 *Provided, That such notification shall occur within 14 days*
19 *of a contract identifying the programmed amount: Provided*
20 *further, That the Secretary shall notify the Committees on*
21 *Appropriations of both Houses of Congress 14 days prior*
22 *to the obligation of such bid savings and shall describe the*
23 *anticipated use of such savings.*

24 *SEC. 229. The scope of work for a project included in*
25 *“Construction, Major Projects” may not be increased above*

1 *the scope specified for that project in the original justifica-*
2 *tion data provided to the Congress as part of the request*
3 *for appropriations.*

4 *SEC. 230. The Secretary of Veterans Affairs shall sub-*
5 *mit to the Committees on Appropriations of both Houses*
6 *of Congress a quarterly report that contains the following*
7 *information from each Veterans Benefits Administration*
8 *Regional Office: (1) the average time to complete a dis-*
9 *ability compensation claim; (2) the number of claims pend-*
10 *ing more than 125 days; (3) error rates; (4) the number*
11 *of claims personnel; (5) any corrective action taken within*
12 *the quarter to address poor performance; (6) training pro-*
13 *grams undertaken; and (7) the number and results of Qual-*
14 *ity Review Team audits: Provided, That each quarterly re-*
15 *port shall be submitted no later than 30 days after the end*
16 *of the respective quarter.*

17 *SEC. 231. Of the funds provided to the Department of*
18 *Veterans Affairs for fiscal year 2016 for “Medical Services”*
19 *and “Medical Support and Compliance”, a maximum of*
20 *\$5,000,000 may be obligated from the “Medical Services”*
21 *account and a maximum of \$154,596,000 may be obligated*
22 *from the “Medical Support and Compliance” account for*
23 *the VistA Evolution and electronic health record interoper-*
24 *ability projects: Provided, That funds in addition to these*
25 *amounts may be obligated for the VistA Evolution and elec-*

1 *tronic health record interoperability projects upon written*
2 *notification by the Secretary of Veterans Affairs to the Com-*
3 *mittees on Appropriations of both Houses of Congress.*

4 *SEC. 232. The Secretary of Veterans Affairs shall pro-*
5 *vide written notification to the Committees on Appropria-*
6 *tions of both Houses of Congress 15 days prior to organiza-*
7 *tional changes which result in the transfer of 25 or more*
8 *full-time equivalents from one organizational unit of the*
9 *Department of Veterans Affairs to another.*

10 *SEC. 233. The Secretary of Veterans Affairs shall pro-*
11 *vide on a quarterly basis to the Committees on Appropria-*
12 *tions of both Houses of Congress notification of any single*
13 *national outreach and awareness marketing campaign in*
14 *which obligations exceed \$2,000,000.*

15 *SEC. 234. Not more than \$4,400,000 of the funds pro-*
16 *vided in this Act under the heading “Department of Vet-*
17 *erans Affairs—Departmental Administration—General*
18 *Administration” may be used for the Office of Congres-*
19 *sional and Legislative Affairs.*

20 *SEC. 235. None of the funds available to the Depart-*
21 *ment of Veterans Affairs, in this or any other Act, may*
22 *be used to replace the current system by which the Veterans*
23 *Integrated Service Networks select and contract for diabetes*
24 *monitoring supplies and equipment.*

1 (RESCISSIONS OF FUNDS)

2 SEC. 236. Of the discretionary funds made available
3 in title II of division I of Public Law 113–235 for the De-
4 partment of Veterans Affairs for fiscal year 2016,
5 \$198,000,000 are rescinded from “Medical Services”,
6 \$42,000,000 are rescinded from “Medical Support and
7 Compliance”, and \$15,000,000 are rescinded from “Medical
8 Facilities”.

9 (RESCISSIONS OF FUNDS)

10 SEC. 237. (a) There is hereby rescinded an aggregate
11 amount of \$55,000,000 from the total budget authority pro-
12 vided for fiscal year 2016 for discretionary accounts of the
13 Department of Veterans Affairs in—

14 (1) this Act; or

15 (2) any advance appropriation for fiscal year
16 2016 in prior appropriation Acts.

17 (b) The Secretary shall submit to the Committees on
18 Appropriations of both Houses of Congress a report speci-
19 fying the account and amount of each rescission not later
20 than 30 days following enactment of this Act.

21 (RESCISSION OF FUNDS)

22 SEC. 238. Of the unobligated balances available within
23 the “DOD-VA Health Care Sharing Incentive Fund”,
24 \$50,000,000 are hereby rescinded.

1 (RESCISSIONS OF FUNDS)

2 SEC. 239. *Of the discretionary funds made available*
3 *in title II of division I of Public Law 113–235 for the De-*
4 *partment of Veterans Affairs for fiscal year 2015,*
5 *\$1,052,000 are rescinded from “General Administration”,*
6 *and \$5,000,000 are rescinded from “Construction, Minor*
7 *Projects”.*

8 (RESCISSIONS OF FUNDS)

9 SEC. 240. (a) *There is hereby rescinded an aggregate*
10 *amount of \$90,293,000 from prior year unobligated bal-*
11 *ances available within discretionary accounts of the De-*
12 *partment of Veterans Affairs;*

13 (b) *No funds may be rescinded from amounts provided*
14 *under the following headings:*

15 (1) *“Medical Services”;*

16 (2) *“Medical and Prosthetic Research”;*

17 (3) *“National Cemetery Administration”;*

18 (4) *“Board of Veterans Appeals”;*

19 (5) *“General Operating Expenses, Veterans Ben-*
20 *efits Administration”;*

21 (6) *“Office of Inspector General”;*

22 (7) *“Grants for Construction of State Extended*
23 *Care Facilities”;* and

24 (8) *“Grants for Construction of Veterans Ceme-*
25 *teries”.*

1 (c) No amounts may be rescinded from amounts that
2 were designated by the Congress as an emergency require-
3 ment pursuant to the Concurrent Resolution on the Budget
4 or the Balanced Budget and Emergency Deficit Control Act
5 of 1985, as amended.

6 (d) The Secretary shall submit to the Committees on
7 Appropriations of both Houses of Congress a report speci-
8 fying the account and amount of each rescission not later
9 than 30 days following enactment of this Act.

10 SEC. 241. Section 2302(a)(2)(A)(viii) of title 5, United
11 States Code, is amended by inserting “or under title 38”
12 after “of this title”.

13 SEC. 242. The Department of Veterans Affairs is au-
14 thorized to administer financial assistance grants and enter
15 into cooperative agreements with organizations, utilizing a
16 competitive selection process, to train and employ homeless
17 and at-risk veterans in natural resource conservation man-
18 agement.

19 SEC. 243. Section 312 of title 38, United States Code,
20 is amended by adding at the end the following new sub-
21 section:

22 “(c)(1) Whenever the Inspector General, in carrying
23 out the duties and responsibilities established under the In-
24 spector General Act of 1978 (5 U.S.C. App.), issues a work

1 *product that makes a recommendation or otherwise suggests*
2 *corrective action, the Inspector General shall—*

3 *“(A) submit the work product to—*

4 *“(i) the Secretary;*

5 *“(ii) the Committee on Veterans’ Af-*
6 *fairs, the Committee on Homeland Security*
7 *and Governmental Affairs, and the Com-*
8 *mittee on Appropriations of the Senate;*

9 *“(iii) the Committee on Veterans’ Af-*
10 *fairs, the Committee on Oversight and Gov-*
11 *ernment Reform, and the Committee on Ap-*
12 *propriations of the House of Representa-*
13 *tives;*

14 *“(iv) if the work product was initiated*
15 *upon request by an individual or entity*
16 *other than the Inspector General, that indi-*
17 *vidual or entity; and*

18 *“(v) any Member of Congress upon re-*
19 *quest; and*

20 *“(B) the Inspector General shall submit all*
21 *final work products to—*

22 *“(i) if the work product was initiated*
23 *upon request by an individual or entity*
24 *other than the Inspector General, that indi-*
25 *vidual or entity; and*

1 “(ii) any Member of Congress upon re-
2 quest; and

3 “(C) not later than 3 days after the work
4 product is submitted in final form to the Sec-
5 retary, post the work product on the Internet
6 website of the Inspector General.

7 “(2) Nothing in this subsection shall be construed
8 to authorize the public disclosure of information that
9 is specifically prohibited from disclosure by any other
10 provision of law.”.

11 SEC. 244. None of the funds provided in this Act may
12 be used to pay the salary of any individual who (a) was
13 the Executive Director of the Office of Acquisition, Logistics
14 and Construction, and (b) who retired from Federal service
15 in the midst of an investigation, initiated by the Depart-
16 ment of Veterans Affairs, into delays and cost overruns as-
17 sociated with the design and construction of the new med-
18 ical center in Aurora, Colorado.

19 SEC. 245. Of the amounts appropriated or otherwise
20 made available to the Department of Veterans Affairs for
21 the “Medical Services” account for fiscal year 2016 in this
22 Act of any other Act, not less than \$10,000,000 shall be used
23 to hire additional caregiver support coordinators to support
24 the programs of assistance and support for caregivers of vet-
25 erans under section 1720G of title 38, United States Code.

1 *SEC. 246. None of the funds appropriated or otherwise*
 2 *made available to the Department of Veterans Affairs in*
 3 *this Act may be used in a manner that would—*

4 *(1) interfere with the ability of a veteran to par-*
 5 *ticipate in a State-approved medicinal marijuana*
 6 *program;*

7 *(2) deny any services from the Department to a*
 8 *veteran who is participating in such a program; or*

9 *(3) limit or interfere with the ability of a health*
 10 *care provider of the Department to make appropriate*
 11 *recommendations, fill out forms, or take steps to com-*
 12 *ply with such a program.*

13 *TITLE III*

14 *RELATED AGENCIES*

15 *AMERICAN BATTLE MONUMENTS COMMISSION*

16 *SALARIES AND EXPENSES*

17 *For necessary expenses, not otherwise provided for, of*
 18 *the American Battle Monuments Commission, including the*
 19 *acquisition of land or interest in land in foreign countries;*
 20 *purchases and repair of uniforms for caretakers of national*
 21 *cemeteries and monuments outside of the United States and*
 22 *its territories and possessions; rent of office and garage*
 23 *space in foreign countries; purchase (one-for-one replace-*
 24 *ment basis only) and hire of passenger motor vehicles; not*
 25 *to exceed \$7,500 for official reception and representation*

1 *expenses; and insurance of official motor vehicles in foreign*
 2 *countries, when required by law of such countries,*
 3 *\$75,100,000, to remain available until expended.*

4 *FOREIGN CURRENCY FLUCTUATIONS ACCOUNT*

5 *For necessary expenses, not otherwise provided for, of*
 6 *the American Battle Monuments Commission, such sums as*
 7 *may be necessary, to remain available until expended, for*
 8 *purposes authorized by section 2109 of title 36, United*
 9 *States Code.*

10 *UNITED STATES COURT OF APPEALS FOR VETERANS*

11 *CLAIMS*

12 *SALARIES AND EXPENSES*

13 *For necessary expenses for the operation of the United*
 14 *States Court of Appeals for Veterans Claims as authorized*
 15 *by sections 7251 through 7298 of title 38, United States*
 16 *Code, \$32,141,000: Provided, That \$2,500,000 shall be*
 17 *available for the purpose of providing financial assistance*
 18 *as described, and in accordance with the process and report-*
 19 *ing procedures set forth, under this heading in Public Law*
 20 *102-229.*

21 *DEPARTMENT OF DEFENSE—CIVIL*

22 *CEMETERIAL EXPENSES, ARMY*

23 *SALARIES AND EXPENSES*

24 *For necessary expenses for maintenance, operation,*
 25 *and improvement of Arlington National Cemetery and Sol-*

1 *diers’ and Airmen’s Home National Cemetery, including*
 2 *the purchase or lease of passenger motor vehicles for replace-*
 3 *ment on a one-for-one basis only, and not to exceed \$1,000*
 4 *for official reception and representation expenses,*
 5 *\$70,800,000, of which not to exceed \$28,000,000 shall re-*
 6 *main available until September 30, 2018. In addition, such*
 7 *sums as may be necessary for parking maintenance, repairs*
 8 *and replacement, to be derived from the “Lease of Depart-*
 9 *ment of Defense Real Property for Defense Agencies” ac-*
 10 *count.*

11 *ARMED FORCES RETIREMENT HOME*

12 *TRUST FUND*

13 *For expenses necessary for the Armed Forces Retire-*
 14 *ment Home to operate and maintain the Armed Forces Re-*
 15 *tirement Home—Washington, District of Columbia, and the*
 16 *Armed Forces Retirement Home—Gulfport, Mississippi, to*
 17 *be paid from funds available in the Armed Forces Retire-*
 18 *ment Home Trust Fund, \$64,300,000, of which \$1,000,000*
 19 *shall remain available until expended for construction and*
 20 *renovation of the physical plants at the Armed Forces Re-*
 21 *tirement Home—Washington, District of Columbia, and the*
 22 *Armed Forces Retirement Home—Gulfport, Mississippi.*

23 *ADMINISTRATIVE PROVISIONS*

24 *SEC. 301. Funds appropriated in this Act under the*
 25 *heading “Department of Defense—Civil, Cemeterial Ex-*

1 *penses, Army”, may be provided to Arlington County, Vir-*
2 *ginia, for the relocation of the federally owned water main*
3 *at Arlington National Cemetery, making additional land*
4 *available for ground burials.*

5 *SEC. 302. Amounts deposited during the current fiscal*
6 *year to the special account established under 10 U.S.C.*
7 *4727 are appropriated and shall be available until ex-*
8 *pendent to support activities at the Army National Military*
9 *Cemeteries.*

10 *TITLE IV*

11 *GENERAL PROVISIONS*

12 *SEC. 401. No part of any appropriation contained in*
13 *this Act shall remain available for obligation beyond the*
14 *current fiscal year unless expressly so provided herein.*

15 *SEC. 402. None of the funds made available in this*
16 *Act may be used for any program, project, or activity, when*
17 *it is made known to the Federal entity or official to which*
18 *the funds are made available that the program, project, or*
19 *activity is not in compliance with any Federal law relating*
20 *to risk assessment, the protection of private property rights,*
21 *or unfunded mandates.*

22 *SEC. 403. Such sums as may be necessary for fiscal*
23 *year 2016 for pay raises for programs funded by this Act*
24 *shall be absorbed within the levels appropriated in this Act.*

1 *SEC. 404. No part of any funds appropriated in this*
2 *Act shall be used by an agency of the executive branch, other*
3 *than for normal and recognized executive-legislative rela-*
4 *tionships, for publicity or propaganda purposes, and for*
5 *the preparation, distribution, or use of any kit, pamphlet,*
6 *booklet, publication, radio, television, or film presentation*
7 *designed to support or defeat legislation pending before*
8 *Congress, except in presentation to Congress itself.*

9 *SEC. 405. All departments and agencies funded under*
10 *this Act are encouraged, within the limits of the existing*
11 *statutory authorities and funding, to expand their use of*
12 *“E-Commerce” technologies and procedures in the conduct*
13 *of their business practices and public service activities.*

14 *SEC. 406. Unless stated otherwise, all reports and noti-*
15 *fications required by this Act shall be submitted to the Sub-*
16 *committee on Military Construction and Veterans Affairs,*
17 *and Related Agencies of the Committee on Appropriations*
18 *of the House of Representatives and the Subcommittee on*
19 *Military Construction and Veterans Affairs, and Related*
20 *Agencies of the Committee on Appropriations of the Senate.*

21 *SEC. 407. None of the funds made available in this*
22 *Act may be transferred to any department, agency, or in-*
23 *strumentality of the United States Government except pur-*
24 *suant to a transfer made by, or transfer authority provided*
25 *in, this or any other appropriations Act.*

1 *SEC. 408. (a) Any agency receiving funds made avail-*
2 *able in this Act, shall, subject to subsections (b) and (c),*
3 *post on the public Web site of that agency any report re-*
4 *quired to be submitted by the Congress in this or any other*
5 *Act, upon the determination by the head of the agency that*
6 *it shall serve the national interest.*

7 *(b) Subsection (a) shall not apply to a report if—*

8 *(1) the public posting of the report compromises*
9 *national security; or*

10 *(2) the report contains confidential or propri-*
11 *etary information.*

12 *(c) The head of the agency posting such report shall*
13 *do so only after such report has been made available to the*
14 *requesting Committee or Committees of Congress for no less*
15 *than 45 days.*

16 *SEC. 409. (a) None of the funds made available in this*
17 *Act may be used to maintain or establish a computer net-*
18 *work unless such network blocks the viewing, downloading,*
19 *and exchanging of pornography.*

20 *(b) Nothing in subsection (a) shall limit the use of*
21 *funds necessary for any Federal, State, tribal, or local law*
22 *enforcement agency or any other entity carrying out crimi-*
23 *nal investigations, prosecution, or adjudication activities.*

24 *SEC. 410. (a) IN GENERAL.—None of the funds appro-*
25 *priated or otherwise made available to the Department of*

1 *Defense in this Act may be used to construct, renovate, or*
2 *expand any facility in the United States, its territories, or*
3 *possessions to house any individual detained at United*
4 *States Naval Station, Guantánamo Bay, Cuba, for the pur-*
5 *poses of detention or imprisonment in the custody or under*
6 *the control of the Department of Defense.*

7 *(b) The prohibition in subsection (a) shall not apply*
8 *to any modification of facilities at United States Naval*
9 *Station, Guantánamo Bay, Cuba.*

10 *(c) An individual described in this subsection is any*
11 *individual who, as of June 24, 2009, is located at United*
12 *States Naval Station, Guantánamo Bay, Cuba, and who—*

13 *(1) is not a citizen of the United States or a*
14 *member of the Armed Forces of the United States; and*

15 *(2) is—*

16 *(A) in the custody or under the effective*
17 *control of the Department of Defense; or*

18 *(B) otherwise under detention at United*
19 *States Naval Station, Guantánamo Bay, Cuba.*

20 *This Act may be cited as the “Military Construction,*
21 *Veterans Affairs, and Related Agencies Appropriations Act,*
22 *2016”.*

Calendar No. 98

114TH CONGRESS
1ST Session

H. R. 2029

[Report No. 114-57]

AN ACT

Making appropriations for military construction, the Department of Veterans Affairs, and related agencies for the fiscal year ending September 30, 2016, and for other purposes.

MAY 4, 2015

Received; read twice and referred to the Committee on
Appropriations

MAY 21, 2015

Reported with an amendment